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MENU

Vaccinations

Vaccination Requirement for Federal Employees NEW AND UPDATED

Q: By what date do Federal employees need to be fully vaccinated?

A: Federal employees need to be fully vaccinated by November 22, 2021.

Employees will be considered [fully vaccinated](#) for COVID-19 2 weeks after they have received the requisite number of doses of a COVID-19 vaccine approved or authorized for emergency use by the U.S. Food and Drug Administration or that has been listed for emergency use by the World Health Organization. For Pfizer-BioNTech, Moderna, or AstraZeneca/Oxford, that is 2 weeks after an employee has received the second dose in a 2-dose series. For Johnson and Johnson (J&J)/Janssen, that is 2 weeks after an employee has received a single-dose.

More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

Q: By what date do Federal employees need to have had their doses of a COVID-19 vaccination?

A: Federal employees must receive their last dose of their vaccine no later than November 8, 2021, to meet the November 22, 2021 deadline to be fully vaccinated.

The timing between the first and second shots [depends on which vaccine is received](#).

If someone receives the:

- Pfizer-BioNTech COVID-19 vaccine, then that person should get their second shot 3 weeks (or 21 days) after the first. This means for Federal employees to meet the vaccination deadline, they should receive their first vaccination no later than October 18. They would not be eligible for the second dose until November 8, which is the

deadline by which they need to have received both shots.

- Moderna COVID-19 vaccine, then that person should get their second shot 4 weeks (or 28 days) after their first. This means for Federal employees to meet the vaccination deadline, they should receive their first vaccination no later than October 11. They would not be eligible for the second dose until November 8, which is the deadline by which they need to have received both shots.

Since the Johnson & Johnson vaccine only has one shot, Federal employees have until November 8 to receive that shot and still meet the November 22, 2021 deadline to be fully vaccinated.

Depending on employees' locations, they may not have all types of vaccines available to them. Agencies should encourage employees to plan ahead and allow enough time to receive all required vaccine doses before the November 8 deadline to have their second shot.

UPDATED **Q: By what date do individuals who start their government service after November 22, 2021 need to be fully vaccinated?**

A: Agencies should require that individuals who start their government service after November 22, 2021, be [fully vaccinated](#) prior to their start date, except in limited circumstances where an accommodation is legally required. Agencies should require documentation to prove vaccination prior to the enter on-duty date. However, should an agency have an urgent, mission-critical hiring need to onboard new staff prior to those new staff becoming fully vaccinated, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

NEW **Q: How does the requirement for federal employees to be [fully vaccinated](#) apply to individuals who start their employment after the issuance of EO 14043 but prior to November 22, 2021?**

A: Agencies should require that individuals who start their government service prior to November 22, 2021 be fully vaccinated by November 22, 2021, except in limited circumstances where an accommodation is legally required. Should an agency have an

urgent, mission-critical hiring need to onboard new staff who cannot be fully vaccinated by November 22, 2021, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

As soon as possible, agencies should ensure that individuals who will or may start their government service prior to November 22, 2021, are aware of the requirement to be fully vaccinated by that date and how to seek an exception required by law to the vaccination requirement. OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: To what types of Federal employees does the vaccination requirement apply?

A: The vaccination requirement in Executive Order 14043 (Requiring Coronavirus Disease 2019 Vaccination for Federal Employees) covers employees as defined in 5 U.S.C. 2105 (including an employee paid from nonappropriated funds as referenced in 5 U.S.C. 2105(c)). Agencies are strongly encouraged to require vaccinations for any employees or other personnel working under an agreement with an agency not covered by the Executive Order, consistent with applicable law and in consultation with the Safer Federal Workforce Task Force. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14043.

Q: Does the requirement to be vaccinated apply to Federal employees who are not reporting to the worksite (e.g., are on maximum telework or working remotely)?

A: Yes. To protect the health and safety of the Federal workforce and to promote the efficiency of the civil service, all Federal employees covered by Executive Order 14043 and without a legally required exception need to be [fully vaccinated](#) by November 22, 2021, regardless of where they are working. Employees who are on maximum telework or working remotely are not excused from this requirement, including because employees working offsite may interact with the public as part of their duties and agencies may need to recall employees who are on maximum telework or working remotely.

Q: Do agencies need to provide onsite vaccinations to their employees?

A: No. Agencies should take steps to make their employees aware of convenient opportunities to be vaccinated. Given the [widespread availability of vaccinations](#), it is not required that agencies provide vaccinations at their facilities or worksites, although

agencies may choose to do so.

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Vaccination Documentation and Information NEW

Q: Must agencies require documentation from employees to prove vaccination status?

A: Yes, agencies must require documentation from employees to prove vaccination, even if an employee has previously attested to their vaccination status. Employees may provide a copy of the record of immunization from a health care provider or pharmacy, a copy of the COVID-19 Vaccination Record Card, a copy of medical records documenting the vaccination, a copy of immunization records from a public health or state immunization information system, or a copy of any other official documentation containing required data points. The data that must be on any official documentation are the type of vaccine administered, date(s) of administration, and the name of the health care professional(s) or clinic site(s) administering the vaccine(s). Employees must certify under penalty of perjury that the documentation they are submitting is true and correct.

Employees may provide a digital copy of such records, including, for example, a digital photograph, scanned image, or PDF of such a record that clearly and legibly displays the information outlined above. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and Rehabilitation Act of 1973.

NEW Q: Can an employee provide a recent antibody test in order to prove vaccination status?

A: No. An employee must provide the required documentation for proof of vaccination. A recent antibody test cannot be used to prove vaccination status.

Q: How should agencies maintain documentation provided by employees regarding vaccination?

A: Agencies must collect certain information necessary to verify that an employee is fully vaccinated. This includes the type of vaccine administered, the number of doses received, date of administration of each dose, and the submission of an approved form of required documentation, as set forth in this guidance. When providing this information, employees must also be required to certify under penalty of perjury that the information they are submitting is true and correct.

Agencies have unique operational environments and may develop their own processes to both collect and maintain the required information, in compliance with all applicable laws and in accordance with their agency record management policies. Accordingly, agencies may develop and use new processes, systems, tools, and applications to collect and maintain the required information or choose to leverage existing processes, systems, tools, or applications previously established to collect Certification of Vaccination forms. Agency systems, processes, tools, and applications for the collection of this information must allow an employee to update their vaccination status and related information.

The collection and use of this information for many agencies is subject to the OPM/GOVT-10 Employee Medical File system of records notice (SORN) and OPM regulations (5 C.F.R. part 293, subpart E). Under those rules, each agency must have written instructions for its EMF system with appropriate safeguards. Employees must be provided with a [Privacy Act statement](#) at the point of collection of this information. Agencies that are not subject to OPM's regulations (or who employ categories of employees not covered by OPM/GOVT-10) must give their employees an alternative Privacy Act statement. As a general rule, this information should not be maintained in the Official Personnel Folder.

Agencies are encouraged to take steps to promote privacy and IT security, while also providing the relevant information to those who need to know in order to implement the safety protocols. Agencies should consult with their Agency Records Officer, Chief Information Officer, Senior Agency Official for Privacy, and agency's legal counsel to determine the best means to maintain this information to meet the agency's needs.

Q: Which individuals within an agency should have access to information on employees' vaccination status?

A: The Privacy Act permits disclosure within the agency to employees "who have a need for the record in the performance of their duties." 5 U.S.C. 552a(b)(1). Agencies should only

disseminate information to the appropriate agency officials who have a need to know to ensure effective implementation of the safety protocols, which, in many cases, will include the supervisor level. Agencies must comply with the requirements of the Privacy Act at all times. Agencies should consult with their Senior Agency Official for Privacy on any questions related to Privacy Act requirements.

Q: Should agencies require documentation from visitors to verify their attestation of vaccination status?

A: Visitors (except those seeking a public benefit or service, who do not need to attest to or otherwise document vaccination status) must attest to their vaccination status using the [Certification of Vaccination form](#), but agencies should not ask them for documentation to verify their attestation.

Q: Should agencies require documentation from onsite contractor employees to verify their attestation of vaccination status?

A: Prior to contractor employees being subject to a contractual requirement to be vaccinated, onsite contractor employees need only attest to their vaccination status using the [Certification of Vaccination form](#).

For onsite contractor employees who are not yet subject to a contractual requirement to be vaccinated, agencies should not ask them for documentation to verify their attestation. When a contractor employee discloses that they are unvaccinated or declines to complete the attestation, agencies should treat that individual as not fully vaccinated for purposes of implementing safety measures.

If the agency has reasonable grounds to believe that an onsite contractor employee made a false statement on the Certification of Vaccination form, the agency may require that the contractor verify the contractor employee's vaccination documentation and confirm to the agency that the employee has been vaccinated, as part of the agency's review of the matter. If an onsite contractor employee who has attested to being vaccinated exhibits symptoms of COVID-19 illness, the agency should apply its safety protocols, but this is not an appropriate reason to request documentation to verify vaccination status.

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Limited Exceptions to Vaccination Requirement NEW

Q: Are there exceptions to the requirement for all employees to be fully vaccinated?

A: Federal employees must be fully vaccinated other than in limited circumstances where the law requires an exception. In particular, an agency may be required to provide a reasonable accommodation to employees who communicate to the agency that they are not vaccinated against COVID-19 because of a disability or because of a sincerely held religious belief, practice, or observance. Determining whether an exception is legally required will include consideration of factors such as the basis for the claim; the nature of the employee's job responsibilities; and the reasonably foreseeable effects on the agency's operations, including protecting other agency employees and the public from COVID-19. Because such assessments will be fact- and context-dependent, agencies are encouraged to consult their offices of general counsel with questions related to assessing and implementing any such requested accommodations.

NEW Q: Should agencies establish a date by which employees should notify agencies that they are seeking a legally required exception to the requirement to not be fully vaccinated?

A: Yes. In order to ensure that agencies can fully understand the effect of accommodation requests on their operations and to seek to ensure timely review of requests for an accommodation, agencies should establish a date by which employees should as a general matter notify agencies that they are seeking a legally required exception to the requirement

to be fully vaccinated. Employees can submit requests for an exception after the date established by the agency.

NEW Q: Should agencies provide employees who are seeking a legally required exception to the vaccination requirement with a form?

A: Yes. Agencies can refer to the following templates to develop a form for employees who are seeking an exception based on a [medical condition](#) or based on [religion](#). The information on the forms may be used by the agency to help determine whether the employee is entitled to an accommodation. The agency may also ask for other information as needed to determine if the individual is legally entitled to an accommodation. Agencies should consult with their senior agency official for privacy and their office of general counsel to address all legal considerations and privacy requirements in developing their forms, including but not limited to an appropriate Privacy Act Statement. Agencies should comply with any applicable recordkeeping and other requirements.

NEW Q: If an employee requests an accommodation, and that accommodation is denied, how long should the employee be afforded to be fully vaccinated?

A: Agencies should require that an employee whose request for an accommodation is denied receive their first (or, if a one-dose series, only) dose within two weeks of the final determination to deny the accommodation. If receiving a two-dose series, the employee must receive the second dose within 6 weeks of receiving the first dose.

If the employee received a first dose of a two-dose series prior to seeking an accommodation, agencies should require that the employee receive their second dose within two weeks of the final determination to deny the accommodation or within a week of the earliest day by which they can receive their second dose, whichever is later.

NEW Q: If an employee is not fully vaccinated due to a legally required exception, what protocols should that individual follow?

A: Generally, employees would need to follow applicable masking, physical distancing, and testing protocols for individuals who are not fully vaccinated, as well as applicable travel guidance. Additional guidance will be forthcoming regarding testing protocols for individuals who are excepted from the vaccination requirement. There may be circumstances in which an agency determines that the nature of an employee's job responsibilities requires heightened safety protocols if they are provided with a legally required exception. In some cases, the nature of the employee's job may be such that an agency determines that no safety protocol other than vaccination is adequate. In such

circumstances, the agency may deny the requested accommodation.

NEW Q: Can an agency grant an extension to the deadline for vaccination due to a documented medical necessity even if the employee does not meet the legal definition of “disability” to be entitled to an accommodation?

A: Even in cases where the employee does not meet the legal definition of “disability” to be entitled to an accommodation under the Rehabilitation Act, in some limited circumstances an agency may grant an extension to a vaccination deadline based upon other medical considerations. For example, as explained in a separate FAQ, the CDC [recommends](#) delaying COVID-19 vaccination for at least 90 days after receiving monoclonal antibodies or convalescent plasma for COVID-19 treatment. Agencies that receive documented medical reasons that may not qualify as a disability but that necessitate a delay in vaccination should grant extensions but specify, consistent with the nature of the medical necessity, by what date the employee must be fully vaccinated.

Agencies should take note that an individual’s medical need should be considered on a case-by-case basis, including any medical evaluation that addresses the individual’s particular circumstance.

NEW Q: What medical conditions does the CDC consider a contraindication to vaccination with COVID-19 vaccines?

A: The CDC considers a history of the following medical conditions to be [contraindications](#) to vaccination with COVID-19 vaccines:

- Severe allergic reaction (e.g., anaphylaxis) after a previous dose or to a component of the COVID-19 vaccine; and
- Immediate allergic reaction of any severity to a previous dose or known (diagnosed) allergy to a component of the COVID-19 vaccine.

If an individual is allergic to a component of one or more COVID-19 vaccines, that individual may not be allergic to components in all COVID-19 vaccines.

NEW Q: Are there circumstances that the CDC recommends delaying vaccination for COVID-19?

A: Yes. In the following circumstances, the CDC [recommends](#) delaying vaccination for COVID-19 for adults:

- Vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms), and they have met [criteria](#) to discontinue isolation.
- People with a history of multisystem inflammatory syndrome in adults (MIS-A) should consider delaying vaccination until they have recovered from their illness and for 90 days after the date of diagnosis of MIS-A.
- Vaccination should be delayed for 90 days after receiving monoclonal antibodies or convalescent plasma for COVID-19 treatment.
- Whenever possible, mRNA COVID-19 vaccination doses (including the primary series and an additional dose) or the single dose Johnson and Johnson (J&J)/Janssen vaccine should be completed at least two weeks before initiation or resumption of immunosuppressive therapies, but timing of COVID-19 vaccination should take into consideration current or planned immunosuppressive therapies and optimization of both the patient's medical condition and response to vaccine. A patient's clinical team is best positioned to determine the degree of immune compromise and appropriate timing of vaccination.
- People who develop myocarditis or pericarditis after a dose of an mRNA COVID-19 vaccine should delay receiving a subsequent dose. People who choose to receive a subsequent dose should wait until myocarditis has completely resolved.
- People who have a history of myocarditis or pericarditis unrelated to mRNA COVID-19 vaccination may receive any currently FDA-approved or FDA-authorized COVID-19 vaccine after the episode of myocarditis or pericarditis has completely resolved. This includes resolution of symptoms attributed to myocarditis or pericarditis, as well as no evidence of ongoing heart inflammation or sequelae as determined by the person's clinical team, which may include a cardiologist, and special testing to assess cardiac recovery.

This is not an exhaustive list of the circumstances in which clinical considerations may recommend in favor of delaying vaccination.

In circumstances in which delay pursuant to these clinical considerations means that an employee is not fully vaccinated by November 22, 2021, the agency should require that individual to receive their first (or if a one-dose series, only) dose no later than two weeks after clinical considerations no longer recommend delay. If receiving a two-dose series, the employee should be required to receive the second dose within 6 weeks of receiving the first dose. If the employee already received a first dose of a two-dose series, they should be

required to receive their second dose no later than two weeks after clinical considerations no longer recommend delay.

During the period in which vaccination is delayed, an employee must follow applicable masking, physical distancing, and testing protocols for not fully vaccinated individuals, as well as applicable travel guidance. There may be circumstances in which an agency determines that the nature of an employee's job responsibilities requires heightened safety protocols during the intervening time.

NEW Q: Is vaccination for COVID-19 recommended for people who are trying to get pregnant or might become pregnant in the future?

A: Yes. The CDC has [stated](#) that COVID-19 vaccination is recommended for people who are trying to get pregnant now or might become pregnant in the future, as well as their partners.

NEW Q: Does the CDC recommend that an employee delay vaccination due to pregnancy?

A: The CDC recommends COVID-19 vaccination for [people who are pregnant, breastfeeding, trying to become pregnant now, or trying to become pregnant in the future](#). The American College of Obstetricians and Gynecologists and Society for Maternal-Fetal Medicine [recommend](#) that all pregnant individuals be vaccinated against COVID-19. However, an agency may allow such an employee to delay vaccination based on the employee's particular medical circumstances, consistent with the agency's process for reviewing delay requests.

NEW Q: Is an employee who has had a prior COVID-19 infection required to be fully vaccinated?

A: Yes, an employee who has had a prior COVID-19 infection is required to be fully vaccinated. The CDC recommends that vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms) and has satisfied the [criteria](#) to discontinue isolation.

NEW Q: Can an employee delay a COVID-19 vaccine because they have recently received another vaccine, such as the seasonal influenza vaccine?

A: COVID-19 vaccines may be administered without regard to timing of other vaccines. This includes simultaneous administration of COVID-19 vaccine and other vaccines on the same

day.

NEW Q: Can an employee delay a second dose of a two-dose series mRNA vaccine series because of lack of availability of a second dose?

A: In situations where the same mRNA vaccine product is temporarily unavailable, it is preferable to delay the second dose to receive the same product than to receive a mixed series using a different product. In exceptional situations in which the mRNA vaccine product given for the first dose cannot be determined or is no longer available, any available mRNA COVID-19 vaccine may be administered at a minimum interval of 28 days between doses to complete the mRNA COVID-19 vaccination series.

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Enforcement of Vaccination Requirement for Employees UPDATED

UPDATED **Q: What steps may an agency take if a Federal employee refuses to be vaccinated or provide proof of vaccination?**

A: Employees covered by Executive Order 14043 who fail to comply with a requirement to be fully vaccinated or provide proof of vaccination and have neither received an exception nor have an exception request under consideration, are in violation of a lawful order. Employees who violate lawful orders are subject to discipline, up to and including termination or removal.

Consistent with the Administration's policy, agencies should initiate an enforcement process to work with employees to encourage their compliance. Accordingly, agencies should initiate the enforcement process with a brief period of education and counseling (5 days), including providing employees with information regarding the [the benefits of vaccination](#) and [ways to obtain the vaccine](#). If the employee does not demonstrate progress toward becoming fully vaccinated through completion of a required vaccination dose or provision of required documentation by the end of the counseling and education period, it should be followed by a short suspension (14 days or less). Continued noncompliance during the suspension can be followed by proposing removal. Unique operational needs of agencies and the circumstances affecting a particular employee may warrant departure

from these guidelines if necessary, but consistency across government in enforcement of this government-wide vaccine policy is desired, and the Executive Order does not permit exceptions from the vaccination requirement except as required by law.

Agencies may initiate the enforcement process as soon as November 9, 2021, for employees who fail to submit documentation to show that they have completed receiving required vaccination dose(s) by November 8, as long as those employees have not received an exception and the agency is not considering an exception request from the employee.

If an employee responds at any phase of the discipline by submitting proof of progress toward full vaccination (i.e., completion of a required vaccination dose), the agency should hold the discipline in abeyance to afford the employee a reasonable period of time to become fully vaccinated. In pursuing any adverse action, the agency must provide the required procedural rights to an employee and follow normal processes, including any agency policies or collective bargaining agreement requirements concerning disciplinary matters. Employees should not be placed on administrative leave while pursuing an adverse action for refusal to be vaccinated but will be required to follow safety protocols for employees who are not fully vaccinated when reporting to agency worksites.

If the employee claims a legally required exception as the reason for not being vaccinated, an agency should follow its ordinary process to review and consider what, if any, accommodation it must offer. All agency personnel designated to receive requests for accommodations should know how to handle requests consistent with the Federal employment nondiscrimination laws that may apply. If the employee's request for an exception is denied, and the employee does not comply with the vaccination requirement, the agency may pursue disciplinary action, up to and including removal from Federal service.

OPM has issued [additional guidance](#) to further assist agencies with enforcing the vaccination requirement for Federal employees.

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Q: Can agencies incorporate vaccination requirements into contracts that are not covered by Executive Order 14042 (Ensuring Adequate COVID Safety Protocols for Contractors)?

A: Yes. Agencies are strongly encouraged to incorporate vaccination requirements into contracts that are not covered by Executive Order 14042, consistent with applicable law. This might include, for example, incorporating vaccination requirements into contracts in advance of when they are otherwise required by the Executive Order or incorporating requirements into contracts that are not covered by the Executive Order, such as contracts under the Simplified Acquisition Threshold. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14042.

Q: Should agencies inquire regarding the vaccination status of onsite contractor employees?

A: Prior to contractor employees being subject to a contractual requirement to be

vaccinated, agencies need to ask about the vaccination status of those onsite contractor employees. Onsite contractor employees must attest to the truthfulness of the response they provide. If an onsite contractor employee chooses not to provide a response, they will be treated as not fully vaccinated for the purpose of agency safety protocols. In requesting this information, agencies should comply with any applicable federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act.

Q: Do onsite contractor employees need to provide proof of a negative COVID-19 test?

A: Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees who are not fully vaccinated or who decline to provide information about their vaccination status must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a federal building. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a federal building unless required to by the agency testing program.

Q: How should an agency ask onsite contractor employees about their vaccination status?

A: Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees should be provided with the [Certification of Vaccination form](#) when they enter a federal building or federally controlled indoor worksite.

Unless an agency has an existing system of records notice that permits it to collect and maintain this information on its contractor employees, agencies will direct onsite contractor employees to complete the Certification of Vaccination form and keep it with them during their time on federal premises—they may be asked to show the form upon entry to a federal building or federally controlled indoor worksite and to a federal employee who oversees their work.

Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees who are not fully vaccinated (or who decline to disclose vaccination status) are required to show proof of a negative COVID-19 test result from within the previous 3 days before entry to a federal building or federally controlled indoor worksite. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a federal building unless required to by the agency testing program.

Agencies may email Certification of Vaccination form to contractor employees in advance of

their time on-site or utilize a unique tool or application to share the form with contractor employees and enable them to easily complete it, but the agency will not maintain Certification of Vaccination forms from contractor employees at this time unless an agency has a system of records notice that covers its collection of this information from onsite contractor employees. Any such collection, storage, or maintenance of the attestation disclosure forms may implicate the Privacy Act and Paperwork Reduction Act.

Prior to having a contractual requirement for its employees to be vaccinated and if authorized and consistent with the terms of the contract, an agency may work with a contractor to facilitate compliance by its onsite employees with the agency's safety protocols, such as by having the company attest that all onsite contractor employees are fully vaccinated.

Q: Should agencies inquire regarding the vaccination status of visitors to federal buildings?

A: Visitors to federal buildings should be asked to provide information about vaccination status. In requesting this information, agencies should comply with any applicable federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act. Visitors who are not fully vaccinated or who decline to provide information about their vaccination status must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a federal building.

These requirements related to the provision of information about vaccination and provision of proof of a recent negative COVID-19 test do not apply to members of the public entering a federal building or federal land to obtain a public service or benefit. If they are not fully vaccinated, these visitors must comply with all relevant CDC guidance, including wearing a mask and physically distancing from other people.

Q: How should an agency ask visitors about their vaccination status?

A: Agencies should provide visitors with the [Certification of Vaccination form](#) when they enter a federal building or federally controlled indoor worksite. Agencies will direct visitors to complete the Certification of Vaccination form and keep it with them during their time on federal premises—visitors may be asked to show the form upon entry to a federal building or federally controlled indoor worksite. If they are not fully vaccinated or decline to answer, they will be required to show a negative COVID-19 test result from within the previous three days.

Agencies may email the Certification of Vaccination form to visitors in advance of arrival or

utilize a tool or application to share the form with visitors and enable visitors to easily complete it, but the agency will not maintain Certification of Vaccination forms from visitors.

Individuals entering a federal building, federally controlled indoor worksite, or federal land to obtain a public service or benefit do not need to complete the form or show documentation of a negative COVID-19 test result. However, if they are not fully vaccinated, they must comply with all relevant CDC guidance and safety protocols, including mask-wearing and physical distancing requirements.

Q: What type of negative COVID-19 test result must a visitor or onsite contractor employee who is not fully vaccinated show documentation of in order to enter a federal building?

A: Agencies may determine what types of tests a visitor or onsite contractor employee who is not subject to a contractual requirement to be vaccinated can show documentation of in order to enter a federal building, provided that the tests are authorized by the U.S. Food and Drug Administration to detect current infection and produce a dated result.

Q: If an agency has a system of records notice that covers its collection of information on vaccination status from onsite contractor employees, can the agency collect that information?

A: Yes, if an agency has a system of records notice that covers its collection of the requisite information—as reflected in the [Certification of Vaccination form](#)—from onsite contractor employees consistent with the Privacy Act, it may do so. The agency should ensure such a collection is also consistent with the Paperwork Reduction Act. The agency should provide a means for individuals to update their vaccination status over time.

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Vaccinations

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Limited Exceptions to Vaccination Requirement NEW

Enforcement of Vaccination Requirement for Employees UPDATED

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Q: Who is considered fully vaccinated?

A: People are considered [fully vaccinated](#) for COVID-19 ≥ 2 weeks after they have received the second dose in a 2-dose series (Pfizer-BioNTech or Moderna), or ≥ 2 weeks after they have received a single-dose vaccine (Johnson and Johnson (J&J)/Janssen). There is currently no post-vaccination time limit on fully vaccinated status.

This guidance applies to COVID-19 vaccines currently either approved or authorized for emergency use by the U.S. Food and Drug Administration (Pfizer-BioNTech, Moderna, and Johnson & Johnson [J&J]/Janssen COVID-19 vaccines). This guidance can also be applied to COVID-19 vaccines that have been listed for emergency use by the World Health Organization (e.g., AstraZeneca/Oxford). More information is available at [Interim Clinical](#)

[Considerations for Use of COVID-19 Vaccines | CDC.](#)

Q: Can an employee who participates in a clinical trial for a COVID-19 vaccine be considered fully vaccinated?

A: Clinical trial participants from a U.S. site who are documented to have received the full series of an “active” (not placebo) COVID-19 vaccine candidate, for which vaccine efficacy has been independently confirmed (e.g., by a data and safety monitoring board), can be considered fully vaccinated 2 weeks after they have completed the vaccine series. Currently, the Novavax COVID-19 vaccine meets these criteria. More information is available [here](#).

Q: Are agencies required to establish different safety protocols for fully vaccinated and not fully vaccinated individuals?

A: Yes. [Fully vaccinated individuals](#) do not need to physically distance or have restrictions on their official travel (although they still must comply with any local requirements and relevant CDC guidance for fully vaccinated individuals while traveling). Fully vaccinated individuals in areas of substantial or high transmission (see the [CDC COVID-19 Data Tracker County View](#)) need to wear a mask in public indoor settings. Fully vaccinated individuals in areas of low or moderate transmission do not need to wear a mask, unless required by state or local regulations or laws.

Fully vaccinated individuals might choose to wear a mask regardless of the level of transmission for a variety of reasons.

Some employees will not be vaccinated because they are legally entitled to a reasonable accommodation. Some onsite contractor employees may not yet be subject to a contractual requirement to be vaccinated. Individuals who are not fully vaccinated or who decline to provide information about their vaccination status must wear masks regardless of community transmission level, physically distance, and comply with travel requirements for not fully vaccinated individuals

Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees who are not fully vaccinated or who decline to provide information about their vaccination status must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a federal building. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a federal building unless required to by the agency testing program.

Visitors will be asked to provide information about their vaccination status. Individuals who decline to provide information on their vaccination status will be treated as not fully vaccinated for purposes of agency COVID-19 workplace safety plans and protocols. Visitors who are not fully vaccinated must provide proof of a negative COVID-19 test that occurred within the previous 3 days prior to entry to a federal building.

Individuals entering a federal building or federal land to obtain a public service or benefit do not need to provide information about their vaccination status or provide proof of a negative COVID-19 test. If they are not fully vaccinated, they must comply with all relevant CDC guidance, including wearing a mask.

Q: Prior to an employee being fully vaccinated, what protocols should that individual follow?

A: Federal employees who are not fully vaccinated must comply with all agency requirements for individuals who are not fully vaccinated, including those requirements related to masking, physical distancing, and travel, subject to any legally required reasonable accommodation. In determining safety protocols for employees ahead of the deadline for employee vaccination, agencies can use information from vaccination attestations submitted by employees, or other information that the agency has on the vaccination status of employees (for example, information available to the agency because the agency administered the vaccine to an employee or the agency conducted a survey of its employees regarding vaccination status) consistent with the requirements of the Privacy Act.

Where the agency already has the requisite information regarding vaccination status, it can utilize that information for purposes of determining the proper safety protocols to apply to that individual. When an employee discloses that they are not fully vaccinated, or if an agency does not know the vaccination status of an employee, agencies should follow the protocols for an individual who is not fully vaccinated for purposes of implementing safety measures.

Q: If a federal employee seeks to enter space under the control of another agency, must they complete a Certification of Vaccination form at that agency?

A: Yes, federal employees are treated as visitors during their visit to another agency, meaning they would need to complete a [Certification of Vaccination form](#) and, if they are not fully vaccinated, they would need to show proof of a negative COVID-19 test result within the past 3 days. As with other visitors, the employee should keep the form with them

during their time onsite at the other agency.

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Vaccinations

Vaccination Requirement for Federal Employees

Q: By what date do Federal employees need to be fully vaccinated?

A: Federal employees need to be fully vaccinated by November 22, 2021.

Employees will be considered [fully vaccinated](#) for COVID-19 2 weeks after they have received the requisite number of doses of a COVID-19 vaccine approved or authorized for emergency use by the U.S. Food and Drug Administration or that has been listed for emergency use by the World Health Organization. For Pfizer-BioNTech, Moderna, or AstraZeneca/Oxford, that is 2 weeks after an employee has received the second dose in a 2-dose series. For Johnson and Johnson (J&J)/Janssen, that is 2 weeks after an employee has received a single-dose.

More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

Q: By what date do Federal employees need to have had their doses of a COVID-19 vaccination?

A: Federal employees must receive their last dose of their vaccine no later than November 8, 2021, to meet the November 22, 2021 deadline to be fully vaccinated.

The timing between the first and second shots [depends on which vaccine is received](#).

If someone receives the:

- Pfizer-BioNTech COVID-19 vaccine, then that person should get their second shot 3 weeks (or 21 days) after the first. This means for Federal employees to meet the vaccination deadline, they should receive their first vaccination no later than October 18. They would not be eligible for the second dose until November 8, which is the

deadline by which they need to have received both shots.

- Moderna COVID-19 vaccine, then that person should get their second shot 4 weeks (or 28 days) after their first. This means for Federal employees to meet the vaccination deadline, they should receive their first vaccination no later than October 11. They would not be eligible for the second dose until November 8, which is the deadline by which they need to have received both shots.

Since the Johnson & Johnson vaccine only has one shot, Federal employees have until November 8 to receive that shot and still meet the November 22, 2021 deadline to be fully vaccinated.

Depending on employees' locations, they may not have all types of vaccines available to them. Agencies should encourage employees to plan ahead and allow enough time to receive all required vaccine doses before the November 8 deadline to have their second shot.

Q: By what date do individuals who start their government service after November 22, 2021 need to be fully vaccinated?

A: Agencies should require that individuals who start their government service after November 22, 2021, be [fully vaccinated](#) prior to their start date, except in limited circumstances where an accommodation is legally required. Agencies should require documentation to prove vaccination prior to the enter on-duty date. However, should an agency have an urgent, mission-critical hiring need to onboard new staff prior to those new staff becoming fully vaccinated, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: How does the requirement for federal employees to be [fully vaccinated](#) apply to individuals who start their employment after the issuance of EO 14043 but prior to November 22, 2021?

A: Agencies should require that individuals who start their government service prior to November 22, 2021 be fully vaccinated by November 22, 2021, except in limited circumstances where an accommodation is legally required. Should an agency have an

urgent, mission-critical hiring need to onboard new staff who cannot be fully vaccinated by November 22, 2021, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

As soon as possible, agencies should ensure that individuals who will or may start their government service prior to November 22, 2021, are aware of the requirement to be fully vaccinated by that date and how to seek an exception required by law to the vaccination requirement. OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: To what types of Federal employees does the vaccination requirement apply?

A: The vaccination requirement in Executive Order 14043 (Requiring Coronavirus Disease 2019 Vaccination for Federal Employees) covers employees as defined in 5 U.S.C. 2105 (including an employee paid from nonappropriated funds as referenced in 5 U.S.C. 2105(c)). Agencies are strongly encouraged to require vaccinations for any employees or other personnel working under an agreement with an agency not covered by the Executive Order, consistent with applicable law and in consultation with the Safer Federal Workforce Task Force. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14043.

Q: Does the requirement to be vaccinated apply to Federal employees who are not reporting to the worksite (e.g., are on maximum telework or working remotely)?

A: Yes. To protect the health and safety of the Federal workforce and to promote the efficiency of the civil service, all Federal employees covered by Executive Order 14043 and without a legally required exception need to be [fully vaccinated](#) by November 22, 2021, regardless of where they are working. Employees who are on maximum telework or working remotely are not excused from this requirement, including because employees working offsite may interact with the public as part of their duties and agencies may need to recall employees who are on maximum telework or working remotely.

Q: Do agencies need to provide onsite vaccinations to their employees?

A: No. Agencies should take steps to make their employees aware of convenient opportunities to be vaccinated. Given the [widespread availability of vaccinations](#), it is not required that agencies provide vaccinations at their facilities or worksites, although

agencies may choose to do so.

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Q: Must agencies require documentation from employees to prove vaccination status?

A: Yes, agencies must require documentation from employees to prove vaccination, even if an employee has previously attested to their vaccination status. Employees may provide a copy of the record of immunization from a health care provider or pharmacy, a copy of the COVID-19 Vaccination Record Card, a copy of medical records documenting the vaccination, a copy of immunization records from a public health or state immunization information system, or a copy of any other official documentation containing required data points (the required data points for such other official documentation are the type of vaccine administered, date(s) of administration, and the name of the health care professional(s) or clinic site(s) administering the vaccine(s)). Employees must certify under penalty of perjury that the documentation they are submitting is true and correct.

Employees may provide a digital copy of such records, including, for example, a digital photograph, scanned image, or PDF of such a record that clearly and legibly displays the information outlined above. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and Rehabilitation Act of 1973.

Q: What steps should an agency take when an employee has lost or does not have a copy of required vaccination documentation?

A: If an employee states that they have lost their vaccination documentation or do not have a copy of it, the agency should direct the employee to contact the vaccination provider site

where they received their vaccine. If the location where the employee received their COVID-19 vaccine is no longer operating, the employee should contact their health care provider, who, in most cases, can access a State or local health department's immunization information system (IIS) for the employee's record. In many States or localities, the employees may themselves be able to get their record by directly contacting the State or local health department's IIS. Employees should contact their State or local health department if they have additional questions about vaccination cards or vaccination records.

If an employee was vaccinated in another country, the agency should direct the employee to contact the vaccination provider site where they received their vaccine for information on how to obtain records. Alternatively, the employee should contact the appropriate health department in that country.

If an employee who claims they are fully vaccinated is able to demonstrate to the agency a good faith effort to locate required documentation, the agency can hold any disciplinary action associated with failure to comply with the vaccination requirement in abeyance for a short period of time, pending the employee's submission of documentation providing proof of vaccination.

Q: Can an employee provide a recent antibody test in order to prove vaccination status?

A: No. An employee must provide the required documentation for proof of vaccination. A recent antibody test cannot be used to prove vaccination status.

Q: How should agencies maintain documentation provided by employees regarding vaccination?

A: Agencies must collect certain information necessary to verify that an employee is fully vaccinated. This includes the type of vaccine administered, the number of doses received, date of administration of each dose, and the submission of an approved form of required documentation, as set forth in this guidance. When providing this information, employees must also be required to certify under penalty of perjury that the information they are submitting is true and correct.

Agencies have unique operational environments and may develop their own processes to both collect and maintain the required information, in compliance with all applicable laws and in accordance with their agency record management policies. Accordingly, agencies may develop and use new processes, systems, tools, and applications to collect and

maintain the required information or choose to leverage existing processes, systems, tools, or applications previously established to collect Certification of Vaccination forms. Agency systems, processes, tools, and applications for the collection of this information must allow an employee to update their vaccination status and related information.

The collection and use of this information for many agencies is subject to the OPM/GOVT-10 Employee Medical File system of records notice (SORN) and OPM regulations (5 C.F.R. part 293, subpart E). Under those rules, each agency must have written instructions for its EMF system with appropriate safeguards. Employees must be provided with a [Privacy Act statement](#) at the point of collection of this information. Agencies that are not subject to OPM's regulations (or who employ categories of employees not covered by OPM/GOVT-10) must give their employees an alternative Privacy Act statement. As a general rule, this information should not be maintained in the Official Personnel Folder.

Agencies are encouraged to take steps to promote privacy and IT security, while also providing the relevant information to those who need to know in order to implement the safety protocols. Agencies should consult with their Agency Records Officer, Chief Information Officer, Senior Agency Official for Privacy, and agency's legal counsel to determine the best means to maintain this information to meet the agency's needs.

Q: Which individuals within an agency should have access to information on employees' vaccination status?

A: The Privacy Act permits disclosure within the agency to employees "who have a need for the record in the performance of their duties." 5 U.S.C. 552a(b)(1). Agencies should only disseminate information to the appropriate agency officials who have a need to know to ensure effective implementation of the safety protocols, which, in many cases, will include the supervisor level. Agencies must comply with the requirements of the Privacy Act at all times. Agencies should consult with their Senior Agency Official for Privacy on any questions related to Privacy Act requirements.

Q: Is onsite verification of vaccination status for Federal employees required as a condition of entry to GSA-controlled facilities?

A: No, onsite verification of a Federal employee's COVID-19 vaccination status is not required as a condition to enter GSA-controlled facilities. Security officers at GSA-controlled facilities will admit any Federal employee with a valid PIV card to the facility without requiring onsite proof of vaccination.

Enforcement of applicable workplace safety protocols, including any required testing for

Federal employees with approved or pending exceptions, are the responsibility of occupant agencies.

Q: Should agencies require documentation from visitors to verify their attestation of vaccination status?

A: Visitors (except those seeking a public benefit or service, who do not need to attest to or otherwise document vaccination status) must attest to their vaccination status using the [Certification of Vaccination form](#), but agencies should not ask them for documentation to verify their attestation.

Q: Should agencies require documentation from onsite contractor employees to verify their attestation of vaccination status?

A: Prior to contractor employees being subject to a contractual requirement to be vaccinated, onsite contractor employees need only attest to their vaccination status using the [Certification of Vaccination form](#).

For onsite contractor employees who are not yet subject to a contractual requirement to be vaccinated, agencies should not ask them for documentation to verify their attestation. When a contractor employee discloses that they are unvaccinated or declines to complete the attestation, agencies should treat that individual as not fully vaccinated for purposes of implementing safety measures.

If the agency has reasonable grounds to believe that an onsite contractor employee made a false statement on the Certification of Vaccination form, the agency may require that the contractor verify the contractor employee's vaccination documentation and confirm to the agency that the employee has been vaccinated, as part of the agency's review of the matter. If an onsite contractor employee who has attested to being vaccinated exhibits symptoms of COVID-19 illness, the agency should apply its safety protocols, but this is not an appropriate reason to request documentation to verify vaccination status.

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Q: Are there exceptions to the requirement for all employees to be fully vaccinated?

A: Federal employees must be fully vaccinated other than in limited circumstances where the law requires an exception. In particular, an agency may be required to provide a reasonable accommodation to employees who communicate to the agency that they are not vaccinated against COVID-19 because of a disability or because of a sincerely held religious belief, practice, or observance. Determining whether an exception is legally required will include consideration of factors such as the basis for the claim; the nature of the employee's job responsibilities; and the reasonably foreseeable effects on the agency's operations, including protecting other agency employees and the public from COVID-19. Because such assessments will be fact- and context-dependent, agencies are encouraged to consult their offices of general counsel with questions related to assessing and implementing any such requested accommodations.

Q: Should agencies establish a date by which employees should notify agencies that they are seeking a legally required exception to the requirement to not be fully vaccinated?

A: Yes. In order to ensure that agencies can fully understand the effect of accommodation requests on their operations and to seek to ensure timely review of requests for an accommodation, agencies should establish a date by which employees should as a general matter notify agencies that they are seeking a legally required exception to the requirement

to be fully vaccinated. Employees can submit requests for an exception after the date established by the agency.

Q: Should agencies provide employees who are seeking a legally required exception to the vaccination requirement with a form?

A: Yes. Agencies can refer to the following templates to develop a form for employees who are seeking an exception based on a [medical condition](#) (*template issued October 4, 2021*) or based on [religion](#) (*template updated October 29, 2021*). The information on the forms may be used by the agency to help determine whether the employee is entitled to an accommodation. The agency may also ask for other information as needed to determine if the individual is legally entitled to an accommodation. Agencies should consult with their senior agency official for privacy and their office of general counsel to address all legal considerations and privacy requirements in developing their forms, including but not limited to an appropriate Privacy Act Statement. Agencies should comply with any applicable recordkeeping and other requirements.

Q: If an employee requests an accommodation, and that accommodation is denied, how long should the employee be afforded to be fully vaccinated?

A: Agencies should require that an employee whose request for an accommodation is denied receive their first (or, if a one-dose series, only) dose within two weeks of the final determination to deny the accommodation. If receiving a two-dose series, the employee must receive the second dose within 6 weeks of receiving the first dose.

If the employee received a first dose of a two-dose series prior to seeking an accommodation, agencies should require that the employee receive their second dose within two weeks of the final determination to deny the accommodation or within a week of the earliest day by which they can receive their second dose, whichever is later.

UPDATED **Q: If a Federal employee is not fully vaccinated due to a pending or approved request for an exception or extension to the COVID-19 vaccination requirement for Federal employees, what workplace safety protocols should that individual follow?**

A: Generally, Federal employees who are not fully vaccinated because they have a pending or approved request for an exception or extension to the COVID-19 vaccination requirement for Federal employees should follow applicable masking, physical distancing, and testing protocols, as well as applicable travel guidance. There may be circumstances in which an agency determines that the nature of an employee's job responsibilities requires

heightened safety protocols if they are provided with a legally required exception or extension. In some cases, the nature of the employee's job may be such that an agency determines that no safety protocol other than vaccination is adequate. In such circumstances, the agency may deny the requested accommodation.

Q: Can an agency grant an extension to the deadline for vaccination due to a documented medical necessity even if the employee does not meet the legal definition of “disability” to be entitled to an accommodation?

A: Even in cases where the employee does not meet the legal definition of “disability” to be entitled to an accommodation under the Rehabilitation Act, in some limited circumstances an agency may grant an extension to a vaccination deadline based upon other medical considerations. For example, as explained in a separate FAQ, the CDC [recommends](#) delaying COVID-19 vaccination for at least 90 days after receiving monoclonal antibodies or convalescent plasma for COVID-19 treatment. Agencies that receive documented medical reasons that may not qualify as a disability but that necessitate a delay in vaccination should grant extensions but specify, consistent with the nature of the medical necessity, by what date the employee must be fully vaccinated.

Agencies should take note that an individual's medical need should be considered on a case-by-case basis, including any medical evaluation that addresses the individual's particular circumstance.

Q: What medical conditions does the CDC consider a contraindication to vaccination with COVID-19 vaccines?

A: The CDC considers a history of the following medical conditions to be [contraindications](#) to vaccination with COVID-19 vaccines:

- Severe allergic reaction (e.g., anaphylaxis) after a previous dose or to a component of the COVID-19 vaccine; and
- Immediate allergic reaction of any severity to a previous dose or known (diagnosed) allergy to a component of the COVID-19 vaccine.

If an individual is allergic to a component of one or more COVID-19 vaccines, that individual may not be allergic to components in all COVID-19 vaccines.

Q: Are there circumstances that the CDC recommends delaying vaccination for COVID-19?

A: Yes. In the following circumstances, the CDC [recommends](#) delaying vaccination for COVID-19 for adults:

- Vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms), and they have met [criteria](#) to discontinue isolation.
- People with a history of multisystem inflammatory syndrome in adults (MIS-A) should consider delaying vaccination until they have recovered from their illness and for 90 days after the date of diagnosis of MIS-A.
- Vaccination should be delayed for 90 days after receiving monoclonal antibodies or convalescent plasma for COVID-19 treatment.
- Whenever possible, mRNA COVID-19 vaccination doses (including the primary series and an additional dose) or the single dose Johnson and Johnson (J&J)/Janssen vaccine should be completed at least two weeks before initiation or resumption of immunosuppressive therapies, but timing of COVID-19 vaccination should take into consideration current or planned immunosuppressive therapies and optimization of both the patient's medical condition and response to vaccine. A patient's clinical team is best positioned to determine the degree of immune compromise and appropriate timing of vaccination.
- People who develop myocarditis or pericarditis after a dose of an mRNA COVID-19 vaccine should delay receiving a subsequent dose. People who choose to receive a subsequent dose should wait until myocarditis has completely resolved.
- People who have a history of myocarditis or pericarditis unrelated to mRNA COVID-19 vaccination may receive any currently FDA-approved or FDA-authorized COVID-19 vaccine after the episode of myocarditis or pericarditis has completely resolved. This includes resolution of symptoms attributed to myocarditis or pericarditis, as well as no evidence of ongoing heart inflammation or sequelae as determined by the person's clinical team, which may include a cardiologist, and special testing to assess cardiac recovery.

This is not an exhaustive list of the circumstances in which clinical considerations may recommend in favor of delaying vaccination.

In circumstances in which delay pursuant to these clinical considerations means that an employee is not fully vaccinated by November 22, 2021, the agency should require that individual to receive their first (or if a one-dose series, only) dose no later than two weeks after clinical considerations no longer recommend delay. If receiving a two-dose series, the

employee should be required to receive the second dose within 6 weeks of receiving the first dose. If the employee already received a first dose of a two-dose series, they should be required to receive their second dose no later than two weeks after clinical considerations no longer recommend delay.

During the period in which vaccination is delayed, an employee must follow applicable masking, physical distancing, and testing protocols for not fully vaccinated individuals, as well as applicable travel guidance. There may be circumstances in which an agency determines that the nature of an employee's job responsibilities requires heightened safety protocols during the intervening time.

Q: Is vaccination for COVID-19 recommended for people who are trying to get pregnant or might become pregnant in the future?

A: Yes. The CDC has [stated](#) that COVID-19 vaccination is recommended for people who are trying to get pregnant now or might become pregnant in the future, as well as their partners.

Q: Does the CDC recommend that an employee delay vaccination due to pregnancy?

A: The CDC recommends COVID-19 vaccination for [people who are pregnant, breastfeeding, trying to become pregnant now, or trying to become pregnant in the future](#). The American College of Obstetricians and Gynecologists and Society for Maternal-Fetal Medicine [recommend](#) that all pregnant individuals be vaccinated against COVID-19. However, an agency may allow such an employee to delay vaccination based on the employee's particular medical circumstances, consistent with the agency's process for reviewing delay requests.

Q: Is an employee who has had a prior COVID-19 infection required to be fully vaccinated?

A: Yes, an employee who has had a prior COVID-19 infection is required to be fully vaccinated. The CDC recommends that vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms) and has satisfied the [criteria](#) to discontinue isolation.

Q: Can an employee delay a COVID-19 vaccine because they have recently received another vaccine, such as the seasonal influenza vaccine?

A: COVID-19 vaccines may be administered without regard to timing of other vaccines. This

includes simultaneous administration of COVID-19 vaccine and other vaccines on the same day.

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Q: What steps may an agency take if a Federal employee refuses to be vaccinated or provide proof of vaccination?

A: Employees covered by Executive Order 14043 who fail to comply with a requirement to be fully vaccinated or provide proof of vaccination and have neither received an exception or extension nor have an exception or extension request under consideration, are in violation of a lawful order. Employees who violate lawful orders are subject to discipline, up to and including termination or removal.

Consistent with the Administration's policy, agencies should initiate an enforcement process to work with employees to achieve their compliance. Accordingly, agencies should initiate the enforcement process with an appropriate period of education and counseling, including providing employees with information regarding [the benefits of vaccination](#) and [ways to obtain the vaccine](#). If the employee does not demonstrate progress toward becoming fully vaccinated through completion of a required vaccination dose or provision of required documentation by the end of the counseling and education period, agencies may issue a letter of reprimand, followed by a short suspension (generally, 14 days or less). Continued noncompliance during the suspension can be followed by proposing removal.

Operational needs of agencies and the circumstances affecting a particular employee may warrant departure from these guidelines if necessary, including whether to expedite or extend the enforcement process. For example, agencies may consider the length of the education and counseling period or following an initial brief suspension (14 days or less) with a longer second suspension (15 days or more), rather than moving from a first suspension to proposal of removal. That said, consistency across Government in enforcement of this Government-wide vaccine policy is desired, and the Executive Order does not permit exceptions from the vaccination requirement except as required by law.

Agencies may initiate the enforcement process for employees who fail to submit documentation to show that they have completed receiving required vaccination dose(s), as long as those employees have not received an exception or extension, or the agency is not considering an exception or extension request from the employee.

If an employee responds at any phase of the enforcement process by submitting proof of progress toward full vaccination (i.e., completion of a required vaccination dose), the agency should hold the discipline in abeyance to afford the employee a reasonable period of time to become fully vaccinated.

In pursuing any adverse action, the agency must provide the required procedural rights to an employee and follow normal processes, including any agency policies or collective bargaining agreement requirements concerning disciplinary matters. Employees should not be placed on administrative leave while agencies are pursuing an adverse action for refusal to be vaccinated, but those employees will be required to follow safety protocols for employees who are not fully vaccinated when reporting to agency worksites.

If the employee claims a legally required exception, or a medical circumstance that necessitates delay of vaccination, as the reason for not being vaccinated, an agency should follow its ordinary process to review and consider what, if any, accommodation it must offer. All agency personnel designated to receive and review requests for accommodations should know how to handle requests consistent with applicable Federal law. If the employee's request for an exception or extension is denied, and the employee does not comply with the vaccination requirement in a timely manner, the agency may pursue disciplinary action, up to and including removal from Federal service.

OPM has issued [additional guidance](#) to further assist agencies with enforcing the vaccination requirement for Federal employees.

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Vaccinations

Vaccination Requirement for Federal Employees

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Enforcement of Vaccination Requirement for Employees

Visitors and Onsite Federal Contractors

Q: Can agencies incorporate vaccination requirements into contracts that are not covered by Executive Order 14042 (Ensuring Adequate COVID Safety Protocols for Contractors)?

A: Yes. Agencies are strongly encouraged to incorporate vaccination requirements into contracts that are not covered by Executive Order 14042, consistent with applicable law. This might include, for example, incorporating vaccination requirements into contracts in advance of when they are otherwise required by the Executive Order or incorporating requirements into contracts that are not covered by the Executive Order, such as contracts under the Simplified Acquisition Threshold. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14042.

Q: Should agencies inquire regarding the vaccination status of onsite contractor employees?

A: Prior to contractor employees being subject to a contractual requirement to be

vaccinated, agencies need to ask about the vaccination status of those onsite contractor employees. Onsite contractor employees must attest to the truthfulness of the response they provide. If an onsite contractor employee chooses not to provide a response, they will be treated as not fully vaccinated for the purpose of agency safety protocols. In requesting this information, agencies should comply with any applicable federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act.

Q: Do onsite contractor employees need to provide proof of a negative COVID-19 test?

A: Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees who are not fully vaccinated or who decline to provide information about their vaccination status must be able to provide proof of a negative COVID-19 test from no later than the previous 3 days prior when in a federal building or federally controlled worksite. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days when in a federal building unless required to by the agency testing program.

Q: How should an agency ask onsite contractor employees about their vaccination status?

A: Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees should be provided with the [Certification of Vaccination form](#) when they enter a federal building or federally controlled worksite.

Unless an agency has an existing system of records notice that permits it to collect and maintain this information on its contractor employees, agencies will direct onsite contractor employees to complete the Certification of Vaccination form and keep it with them during their time on federal premises—they may be asked to show the form when in a federal building or federally controlled worksite and to a federal employee who oversees their work.

Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees who are not fully vaccinated (or who decline to disclose vaccination status) are required to be able to show proof of a negative COVID-19 test result from within the previous 3 days when in a federal building or federally controlled worksite. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days when in a federal building or federally controlled worksite unless required to by the agency testing program.

Agencies may email the Certification of Vaccination form to contractor employees in advance of their time on-site or utilize a unique tool or application to share the form with contractor employees and enable them to easily complete it, but the agency will not maintain Certification of Vaccination forms from contractor employees at this time unless an agency has a system of records notice that covers its collection of this information from onsite contractor employees. Any such collection, storage, or maintenance of the attestation disclosure forms may implicate the Privacy Act and Paperwork Reduction Act.

Prior to having a contractual requirement for its employees to be vaccinated and if authorized and consistent with the terms of the contract, an agency may work with a contractor to facilitate compliance by its onsite employees with the agency's safety protocols, such as by having the company attest that all onsite contractor employees are fully vaccinated.

Q: On or after January 18, 2022, when covered contractor employees are required to be fully vaccinated, will onsite verification of vaccination status be required for contractor employees as a condition of entry to GSA-controlled facilities?

A: No, onsite verification of contractor employee vaccination status will not be required as a condition to enter GSA-controlled facilities on or after January 18, 2022, regardless of whether the contractor has a contractual requirement to be vaccinated as of that date.

On or after January 18, 2022, security officers at GSA-controlled facilities will admit any contractor employee with a valid PIV card to the facility without requiring onsite proof of vaccination. Onsite contractor employees without a valid PIV card will be considered visitors seeking to enter the facility for reasons other than to obtain a public service or benefit, and must follow the protocols for such individuals.

Onsite contractor employees must follow required workplace safety protocols while accessing the facility, such as mask wearing, physical distancing, and testing. The sponsoring Executive Branch agency will be responsible for ensuring contractor employee compliance with relevant workplace safety protocols.

Q: What workplace safety protocols should an agency apply to an onsite contractor employee who is not fully vaccinated because the contractor employee has been provided an exception to the vaccination requirement by their employer?

A: In most circumstances, an agency should require an onsite contractor employee who is not fully vaccinated to follow applicable masking, physical distancing, and testing

protocols. However, there may be circumstances in which an agency determines that the nature of an onsite contractor employee's job responsibilities at a Federal workplace, or the location of their work at a Federal workplace, requires heightened safety protocols. In some cases, an agency may determine that the nature of an onsite contractor employee's responsibilities at a Federal workplace are such that no safety protocol other than vaccination is adequate—in that case, an onsite contractor employee who is not fully vaccinated would be unable to perform the requisite work at the Federal workplace. Such circumstances do not relieve the contractor from meeting all contractual requirements.

In order for agencies to assess appropriate safety measures for contractor employees in Federal workplaces, contractors subject to a contractual requirement for maintaining COVID-19 workplace safety protocols pursuant to Executive Order 14042 should generally notify their contracting officers when one of their employees who works onsite at a Federal workplace has received an exception to the requirement to be fully vaccinated.

Q: Should agencies inquire regarding the vaccination status of visitors to federal buildings?

A: Visitors to federal buildings should be asked to provide information about vaccination status. In requesting this information, agencies should comply with any applicable federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act. Visitors who are not fully vaccinated or who decline to provide information about their vaccination status must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a federal building.

These requirements related to the provision of information about vaccination and provision of proof of a recent negative COVID-19 test do not apply to members of the public entering a federal building or federal land to obtain a public service or benefit. If they are not fully vaccinated, these visitors must comply with all relevant CDC guidance, including wearing a mask and physically distancing from other people.

Q: How should an agency ask visitors about their vaccination status?

A: Agencies should provide visitors with the [Certification of Vaccination form](#) when they enter a federal building or federally controlled indoor worksite. Agencies will direct visitors to complete the Certification of Vaccination form and keep it with them during their time on federal premises—visitors may be asked to show the form upon entry to a federal building or federally controlled indoor worksite. If they are not fully vaccinated or decline to answer, they will be required to show a negative COVID-19 test result from within the previous three

days.

Agencies may email the Certification of Vaccination form to visitors in advance of arrival or utilize a tool or application to share the form with visitors and enable visitors to easily complete it, but the agency will not maintain Certification of Vaccination forms from visitors.

Individuals entering a federal building, federally controlled indoor worksite, or federal land to obtain a public service or benefit do not need to complete the form or show documentation of a negative COVID-19 test result. However, if they are not fully vaccinated, they must comply with all relevant CDC guidance and safety protocols, including mask-wearing and physical distancing requirements.

Q: Are visitors seeking to access GSA-controlled facilities required to be fully vaccinated for COVID-19 as a condition of entry?

A: No, visitors seeking to access GSA-controlled facilities are not required to be fully vaccinated for COVID-19 as a condition of entry. However, visitors must present a completed [Certification of Vaccination form](#) to the security officer as a condition of entry, and follow required workplace safety protocols while accessing the facility, such as mask wearing and physical distancing. Security officers will admit visitors to GSA-controlled facilities after being presented with the Certification of Vaccination Form. Security officers will not collect a visitor's Certification of Vaccination Form. Occupant agencies are responsible for providing the Certification of Vaccination Form to their visitors, determining the vaccination status of the visitor, and ensuring the visitor has the appropriate documentation associated with their COVID-19 vaccination status.

Visitors wishing to enter the facility to obtain a public service or benefit do not need to present a completed Certification of Vaccination Form to the security officer as a condition of entry, although they are required to follow required safety protocols while accessing the facility, such as mask wearing and physical distancing.

Delivery drivers, couriers, U.S. Postal Service, Federal Express and United Parcel Service employees, and other "transient visitors", meaning visitors accessing a facility for less than approximately 15 minutes who interact with very few people, are not required to present a completed Certification of Vaccination Form to the security officer as a condition of entry. They are required to follow required safety protocols while accessing the facility, such as mask wearing and physical distancing.

Additionally, emergency personnel responding to an emergency in a facility, as determined

by GSA, a facility's security officers, or individual occupant agencies within a facility, are not required to present a completed Certification of Vaccination Form to the security officer as a condition of entry. They are required to follow required safety protocols while accessing the facility.

Q: When will updated entry protocols related to vaccination status for visitors seeking to access GSA-controlled facilities take effect?

A: GSA Facility Managers and Lease Administration Managers will convene Facility Security Committees (FSCs), or equivalent security committees, as applicable, to discuss COVID-19 entry protocols for visitors to GSA-controlled facilities.

These protocols will go into effect on a facility-by-facility basis after the following conditions have been met:

- FSCs must provide the agency with protection responsibility for the facility, typically either the Department of Homeland Security - Federal Protective Service (DHS-FPS) or the Department of Justice - U.S. Marshals Service (DOJ-USMS), with a list of public services and benefits provided by all occupant agencies in the facility.
- GSA must post signage at facility entrances indicating that visitors seeking to access the facility for reasons other than to obtain a public service or benefit must present a completed Certification of Vaccination Form to the security officers as a condition of entry, and that visitors seeking to access the facility to obtain a public service or benefit must declare such to the security officers. The signage will also indicate that all visitors are required to follow required safety protocols while accessing the facility, such as mask wearing and physical distancing.

The list of public services and benefits provided by all occupant agencies in the facility will be included in the post orders for the security officers, and security officers will admit visitors who indicate they are entering the facility to obtain a public service or benefit without a completed Certification of Vaccination Form, if the identified public service or benefit is on the list provided by the FSC. If there is a dispute over a particular public service or benefit, the visitor will need to contact the agency providing the public service or benefit for assistance. If occupant agency contact information signage is not currently posted at a GSA-controlled facility, GSA will post that signage at the same time that the visitor access signage is posted.

In GSA-controlled facilities with no onsite protection provided by either DHS-FPS or DOJ-USMS, occupant agencies are responsible for enforcement of visitor access protocols.

Q: What type of negative COVID-19 test result must a visitor or onsite contractor employee who is not fully vaccinated show documentation of in order to enter a federal building?

A: Agencies may determine what types of tests a visitor or onsite contractor employee who is not subject to a contractual requirement to be vaccinated can show documentation of in order to enter a federal building, provided that the tests are authorized by the U.S. Food and Drug Administration to detect current infection and produce a dated result.

Q: If an agency has a system of records notice that covers its collection of information on vaccination status from onsite contractor employees, can the agency collect that information?

A: Yes, if an agency has a system of records notice that covers its collection of the requisite information—as reflected in the [Certification of Vaccination form](#)—from onsite contractor employees consistent with the Privacy Act, it may do so. The agency should ensure such a collection is also consistent with the Paperwork Reduction Act. The agency should provide a means for individuals to update their vaccination status over time.

Labor Relations Related to Vaccination

Safety Protocols Related to Vaccination

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Q: Who is considered fully vaccinated?

A: People are considered [fully vaccinated](#) for COVID-19 ≥ 2 weeks after they have received the second dose in a 2-dose series (Pfizer-BioNTech or Moderna), or ≥ 2 weeks after they have received a single-dose vaccine (Johnson and Johnson (J&J)/Janssen). There is currently no post-vaccination time limit on fully vaccinated status.

This guidance applies to COVID-19 vaccines currently either approved or authorized for emergency use by the U.S. Food and Drug Administration (Pfizer-BioNTech, Moderna, and Johnson & Johnson [J&J]/Janssen COVID-19 vaccines). This guidance can also be applied to COVID-19 vaccines that have been listed for emergency use by the World Health Organization (e.g., AstraZeneca/Oxford). More information is available at [Interim Clinical](#)

[Considerations for Use of COVID-19 Vaccines | CDC.](#)

Q: Can an employee who participates in a clinical trial for a COVID-19 vaccine be considered fully vaccinated?

A: Clinical trial participants from a U.S. site who are documented to have received the full series of an “active” (not placebo) COVID-19 vaccine candidate, for which vaccine efficacy has been independently confirmed (e.g., by a data and safety monitoring board), can be considered fully vaccinated 2 weeks after they have completed the vaccine series. Currently, the U.S.-based AstraZeneca and Novavax COVID-19 vaccines meet these criteria. More information is available [here](#).

Q: Can an employee who has received a heterologous primary vaccine series be considered fully vaccinated?

A: Individuals can be considered fully vaccinated ≥ 2 weeks after receipt of the last dose if they have received any combination of two doses of an FDA approved or authorized or WHO emergency use listed COVID-19 two-dose series. For these purposes, the second dose in a two dose heterologous series must have been received no earlier than 17 days (21 days with a 4-day grace period) after the first dose.

Q: Are agencies required to establish different safety protocols for fully vaccinated and not fully vaccinated individuals?

A: Yes. [Fully vaccinated individuals](#) do not need to physically distance or have restrictions on their official travel (although they still must comply with any local requirements and relevant CDC guidance for fully vaccinated individuals while traveling). Fully vaccinated individuals in areas of substantial or high transmission (see the [CDC COVID-19 Data Tracker County View](#)) need to wear a mask in public indoor settings. Fully vaccinated individuals in areas of low or moderate transmission do not need to wear a mask, unless required by state or local regulations or laws.

Fully vaccinated individuals might choose to wear a mask regardless of the level of transmission for a variety of reasons.

Some employees will not be vaccinated because they are legally entitled to a reasonable accommodation. Some onsite contractor employees may not yet be subject to a contractual requirement to be vaccinated. Individuals who are not fully vaccinated or who decline to provide information about their vaccination status must wear masks regardless of community transmission level, physically distance, and comply with travel requirements for

not fully vaccinated individuals

Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees who are not fully vaccinated or who decline to provide information about their vaccination status must be able to provide proof of a negative COVID-19 test from no later than the previous 3 days when in a federal building or federally controlled worksite. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days when in a federal building or federally controlled worksite unless required to by the agency testing program.

Q: Prior to an employee being fully vaccinated, what protocols should that individual follow?

A: Federal employees who are not fully vaccinated must comply with all agency requirements for individuals who are not fully vaccinated, including those requirements related to masking, physical distancing, and travel, subject to any legally required reasonable accommodation. In determining safety protocols for employees ahead of the deadline for employee vaccination, agencies can use information from vaccination attestations submitted by employees, or other information that the agency has on the vaccination status of employees (for example, information available to the agency because the agency administered the vaccine to an employee or the agency conducted a survey of its employees regarding vaccination status) consistent with the requirements of the Privacy Act.

Where the agency already has the requisite information regarding vaccination status, it can utilize that information for purposes of determining the proper safety protocols to apply to that individual. When an employee discloses that they are not fully vaccinated, or if an agency does not know the vaccination status of an employee, agencies should follow the protocols for an individual who is not fully vaccinated for purposes of implementing safety measures.

Q: If a federal employee seeks to enter space under the control of another agency, must they complete a Certification of Vaccination form at that agency?

A: Yes, federal employees are treated as visitors during their visit to another agency, meaning they would need to complete a [Certification of Vaccination form](#) and, if they are not fully vaccinated, they would need to show proof of a negative COVID-19 test result within the past 3 days. As with other visitors, the employee should keep the form with them

during their time onsite at the other agency.

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Vaccinations

UPDATED

To ensure compliance with an applicable preliminary nationwide injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement pursuant to Executive Order 14043 on *Requiring Coronavirus Disease 2019 Vaccination for Federal Employees*. Safer Federal Workforce Task Force guidance on other Federal agency safety protocols based on vaccination status—including guidance on protocols related to masking, distancing, travel, testing, and quarantine—remains in effect. For answers to frequently asked questions (FAQs) on compliance with the applicable preliminary nationwide injunction, see this [guidance](#) (Issued January 24, 2022; PDF, [Download Adobe Reader](#)).

Vaccination Requirement for Federal Employees

Q: By what date do Federal employees need to be fully vaccinated?

A: Federal employees need to be fully vaccinated by November 22, 2021.

Employees will be considered [fully vaccinated](#) for COVID-19 2 weeks after they have received the requisite number of doses of a COVID-19 vaccine approved or authorized for emergency use by the U.S. Food and Drug Administration or that has been listed for emergency use by the World Health Organization. For Pfizer-BioNTech, Moderna, or AstraZeneca/Oxford, that is 2 weeks after an employee has received the second dose in a 2-dose series. For Johnson and Johnson (J&J)/Janssen, that is 2 weeks after an employee has received a single-dose.

More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

Q: By what date do Federal employees need to have had their doses of a COVID-19 vaccination?

A: Federal employees must receive their last dose of their vaccine no later than November 8, 2021, to meet the November 22, 2021 deadline to be fully vaccinated.

The timing between the first and second shots [depends on which vaccine is received](#).

If someone receives the:

- Pfizer-BioNTech COVID-19 vaccine, then that person should get their second shot 3 weeks (or 21 days) after the first. This means for Federal employees to meet the vaccination deadline, they should receive their first vaccination no later than October 18. They would not be eligible for the second dose until November 8, which is the deadline by which they need to have received both shots.
- Moderna COVID-19 vaccine, then that person should get their second shot 4 weeks (or 28 days) after their first. This means for Federal employees to meet the vaccination deadline, they should receive their first vaccination no later than October 11. They would not be eligible for the second dose until November 8, which is the deadline by which they need to have received both shots.

Since the Johnson & Johnson vaccine only has one shot, Federal employees have until November 8 to receive that shot and still meet the November 22, 2021 deadline to be fully vaccinated.

Depending on employees' locations, they may not have all types of vaccines available to them. Agencies should encourage employees to plan ahead and allow enough time to receive all required vaccine doses before the November 8 deadline to have their second shot.

Q: By what date do individuals who start their government service after November 22, 2021 need to be fully vaccinated?

A: Agencies should require that individuals who start their government service after November 22, 2021, be [fully vaccinated](#) prior to their start date, except in limited circumstances where an accommodation is legally required. Agencies should require documentation to prove vaccination prior to the enter on-duty date. However, should an agency have an urgent, mission-critical hiring need to onboard new staff prior to those new staff becoming fully vaccinated, the agency head may delay the vaccination requirement—in

the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: How does the requirement for federal employees to be [fully vaccinated](#) apply to individuals who start their employment after the issuance of EO 14043 but prior to November 22, 2021?

A: Agencies should require that individuals who start their government service prior to November 22, 2021 be fully vaccinated by November 22, 2021, except in limited circumstances where an accommodation is legally required. Should an agency have an urgent, mission-critical hiring need to onboard new staff who cannot be fully vaccinated by November 22, 2021, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

As soon as possible, agencies should ensure that individuals who will or may start their government service prior to November 22, 2021, are aware of the requirement to be fully vaccinated by that date and how to seek an exception required by law to the vaccination requirement. OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: To what types of Federal employees does the vaccination requirement apply?

A: The vaccination requirement in Executive Order 14043 (Requiring Coronavirus Disease 2019 Vaccination for Federal Employees) covers employees as defined in 5 U.S.C. 2105 (including an employee paid from nonappropriated funds as referenced in 5 U.S.C. 2105(c)). Agencies are strongly encouraged to require vaccinations for any employees or other personnel working under an agreement with an agency not covered by the Executive Order, consistent with applicable law and in consultation with the Safer Federal Workforce Task Force. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14043.

Q: Does the requirement to be vaccinated apply to Federal employees who are not reporting to the worksite (e.g., are on maximum telework or working remotely)?

A: Yes. To protect the health and safety of the Federal workforce and to promote the efficiency of the civil service, all Federal employees covered by Executive Order 14043 and without a legally required exception need to be [fully vaccinated](#) by November 22, 2021, regardless of where they are working. Employees who are on maximum telework or working remotely are not excused from this requirement, including because employees working offsite may interact with the public as part of their duties and agencies may need to recall employees who are on maximum telework or working remotely.

Q: Do agencies need to provide onsite vaccinations to their employees?

A: No. Agencies should take steps to make their employees aware of convenient opportunities to be vaccinated. Given the [widespread availability of vaccinations](#), it is not required that agencies provide vaccinations at their facilities or worksites, although agencies may choose to do so.

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information NEW AND UPDATED

Q: Must agencies require documentation from employees to prove vaccination status?

A: Yes, agencies must require documentation from employees to prove vaccination, even if an employee has previously attested to their vaccination status. Employees may provide a copy of the record of immunization from a health care provider or pharmacy, a copy of the COVID-19 Vaccination Record Card, a copy of medical records documenting the vaccination, a copy of immunization records from a public health or state immunization information system, or a copy of any other official documentation containing required data points (the required data points for such other official documentation are the type of vaccine administered, date(s) of administration, and the name of the health care professional(s) or

clinic site(s) administering the vaccine(s)). Employees must certify under penalty of perjury that the documentation they are submitting is true and correct.

Employees may provide a digital copy of such records, including, for example, a digital photograph, scanned image, or PDF of such a record that clearly and legibly displays the information outlined above. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and Rehabilitation Act of 1973.

Q: What steps should an agency take when an employee has lost or does not have a copy of required vaccination documentation?

A: If an employee states that they have lost their vaccination documentation or do not have a copy of it, the agency should direct the employee to contact the vaccination provider site where they received their vaccine. If the location where the employee received their COVID-19 vaccine is no longer operating, the employee should contact their health care provider, who, in most cases, can access a State or local health department's immunization information system (IIS) for the employee's record. In many States or localities, the employees may themselves be able to get their record by directly contacting the State or local health department's IIS. Employees should contact their State or local health department if they have additional questions about vaccination cards or vaccination records.

If an employee was vaccinated in another country, the agency should direct the employee to contact the vaccination provider site where they received their vaccine for information on how to obtain records. Alternatively, the employee should contact the appropriate health department in that country.

If an employee who claims they are fully vaccinated is able to demonstrate to the agency a good faith effort to locate required documentation, the agency can hold any disciplinary action associated with failure to comply with the vaccination requirement in abeyance for a short period of time, pending the employee's submission of documentation providing proof of vaccination.

Q: Can an employee provide a recent antibody test in order to prove vaccination status?

A: No. An employee must provide the required documentation for proof of vaccination. A recent antibody test cannot be used to prove vaccination status.

NEW Q: Should agencies request and maintain information about whether employees are up to date with COVID-19 vaccines, including collection of documentation of additional primary series doses and booster shots from employees?

A: Safety protocols related to quarantine are contingent in part on whether one is [up to date with COVID-19 vaccines](#), including recommended additional [primary series doses](#) and [booster shots](#). To facilitate implementation of safety protocols, agencies should take steps to maintain information about whether employees are up to date with COVID-19 vaccines, including information about whether they have had recommended additional primary series doses or booster shots, including collection of documentation of proof, as part of broader agency processes and systems for maintaining information on employee vaccination status. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and Rehabilitation Act of 1973. Agencies should consult with their legal counsel and labor relations staff to determine any collective bargaining obligations.

UPDATED Q: How should agencies maintain documentation provided by employees regarding vaccination?

A: Agencies should collect certain information necessary to verify that an employee is fully vaccinated. This information should include the type of vaccine administered, the number of required primary series doses received, date of administration of each required primary series dose, and the submission of an approved form of required documentation, as set forth in this guidance. When providing this information, employees should also be required to certify under penalty of perjury that the information they are submitting is true and correct.

Agencies have unique operational environments and may develop their own processes to both collect and maintain the required information, in compliance with all applicable laws and in accordance with their agency record management policies. Accordingly, agencies may develop and use new processes, systems, tools, and applications to collect and maintain the required information or choose to leverage existing processes, systems, tools, or applications previously established to collect Certification of Vaccination forms. Agency systems, processes, tools, and applications for the collection of this information should allow an employee to update their vaccination status and related information.

To support implementation of safety protocols, agencies also should collect information regarding whether their employees are up to date with COVID-19 vaccines, including, for

example, the type of vaccine administered, the number of additional primary series doses or booster shots received, date of administration of each additional primary series dose or booster shot, and the submission of documentation showing proof of additional primary series doses or booster shots.

The collection and use of this information for many agencies is subject to the OPM/GOVT-10 Employee Medical File system of records notice (SORN) and OPM regulations (5 C.F.R. part 293, subpart E). Under those rules, each agency should have written instructions for its EMF system with appropriate safeguards. Employees should be provided with a Privacy Act statement at the point of collection of this information. Agencies that are not subject to OPM's regulations (or who employ categories of employees not covered by OPM/GOVT-10) should give their employees an alternative [Privacy Act statement](#). As a general rule, this information should not be maintained in the Official Personnel Folder.

Agencies are encouraged to take steps to promote privacy and IT security, while also providing the relevant information to those who need to know in order to implement the safety protocols. Agencies should consult with their Agency Records Officer, Chief Information Officer, Senior Agency Official for Privacy, and agency's legal counsel to determine the best means to maintain this information to meet the agency's needs.

Q: Which individuals within an agency should have access to information on employees' vaccination status?

A: The Privacy Act permits disclosure within the agency to employees "who have a need for the record in the performance of their duties." 5 U.S.C. 552a(b)(1). Agencies should only disseminate information to the appropriate agency officials who have a need to know to ensure effective implementation of the safety protocols, which, in many cases, will include the supervisor level. Agencies must comply with the requirements of the Privacy Act at all times. Agencies should consult with their Senior Agency Official for Privacy on any questions related to Privacy Act requirements.

Q: Is onsite verification of vaccination status for Federal employees required as a condition of entry to GSA-controlled facilities?

A: No, onsite verification of a Federal employee's COVID-19 vaccination status is not required as a condition to enter GSA-controlled facilities. Security officers at GSA-controlled facilities will admit any Federal employee with a valid PIV card to the facility without requiring onsite proof of vaccination.

Enforcement of applicable workplace safety protocols, including any required testing for

Federal employees with approved or pending exceptions, are the responsibility of occupant agencies.

Q: Should agencies require documentation from visitors to verify their attestation of vaccination status?

A: Visitors (except those seeking a public benefit or service, who do not need to attest to or otherwise document vaccination status) must attest to their vaccination status using the [Certification of Vaccination form](#), but agencies should not ask them for documentation to verify their attestation.

Q: Should agencies require documentation from onsite contractor employees to verify their attestation of vaccination status?

A: Prior to contractor employees being subject to a contractual requirement to be vaccinated, onsite contractor employees need only attest to their vaccination status using the [Certification of Vaccination form](#).

For onsite contractor employees who are not yet subject to a contractual requirement to be vaccinated, agencies should not ask them for documentation to verify their attestation. When a contractor employee discloses that they are unvaccinated or declines to complete the attestation, agencies should treat that individual as not fully vaccinated for purposes of implementing safety measures.

If the agency has reasonable grounds to believe that an onsite contractor employee made a false statement on the Certification of Vaccination form, the agency may require that the contractor verify the contractor employee's vaccination documentation and confirm to the agency that the employee has been vaccinated, as part of the agency's review of the matter. If an onsite contractor employee who has attested to being vaccinated exhibits symptoms of COVID-19 illness, the agency should apply its safety protocols, but this is not an appropriate reason to request documentation to verify vaccination status.

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information **NEW AND UPDATED**

Limited Exceptions to Vaccination Requirement

Q: Are there exceptions to the requirement for all employees to be fully vaccinated?

A: Federal employees must be fully vaccinated other than in limited circumstances where the law requires an exception. In particular, an agency may be required to provide a reasonable accommodation to employees who communicate to the agency that they are not vaccinated against COVID-19 because of a disability or because of a sincerely held religious belief, practice, or observance. Determining whether an exception is legally

required will include consideration of factors such as the basis for the claim; the nature of the employee's job responsibilities; and the reasonably foreseeable effects on the agency's operations, including protecting other agency employees and the public from COVID-19. Because such assessments will be fact- and context-dependent, agencies are encouraged to consult their offices of general counsel with questions related to assessing and implementing any such requested accommodations.

Q: Should agencies establish a date by which employees should notify agencies that they are seeking a legally required exception to the requirement to not be fully vaccinated?

A: Yes. In order to ensure that agencies can fully understand the effect of accommodation requests on their operations and to seek to ensure timely review of requests for an accommodation, agencies should establish a date by which employees should as a general matter notify agencies that they are seeking a legally required exception to the requirement to be fully vaccinated. Employees can submit requests for an exception after the date established by the agency.

Q: Should agencies provide employees who are seeking a legally required exception to the vaccination requirement with a form?

A: Yes. Agencies can refer to the following templates to develop a form for employees who are seeking an exception based on a [medical condition](#) (*template issued October 4, 2021*) or based on [religion](#) (*template updated October 29, 2021*). The information on the forms may be used by the agency to help determine whether the employee is entitled to an accommodation. The agency may also ask for other information as needed to determine if the individual is legally entitled to an accommodation. Agencies should consult with their senior agency official for privacy and their office of general counsel to address all legal considerations and privacy requirements in developing their forms, including but not limited to an appropriate Privacy Act Statement. Agencies should comply with any applicable recordkeeping and other requirements.

Q: If an employee requests an accommodation, and that accommodation is denied, how long should the employee be afforded to be fully vaccinated?

A: Agencies should require that an employee whose request for an accommodation is denied receive their first (or, if a one-dose series, only) dose within two weeks of the final determination to deny the accommodation. If receiving a two-dose series, the employee must receive the second dose within 6 weeks of receiving the first dose.

If the employee received a first dose of a two-dose series prior to seeking an accommodation, agencies should require that the employee receive their second dose within two weeks of the final determination to deny the accommodation or within a week of the earliest day by which they can receive their second dose, whichever is later.

Q: If a Federal employee is not fully vaccinated due to a pending or approved request for an exception or extension to the COVID-19 vaccination requirement for Federal employees, what workplace safety protocols should that individual follow?

A: Generally, Federal employees who are not fully vaccinated because they have a pending or approved request for an exception or extension to the COVID-19 vaccination requirement for Federal employees should follow applicable masking, physical distancing, and testing protocols, as well as applicable travel guidance. There may be circumstances in which an agency determines that the nature of an employee's job responsibilities requires heightened safety protocols if they are provided with a legally required exception or extension. In some cases, the nature of the employee's job may be such that an agency determines that no safety protocol other than vaccination is adequate. In such circumstances, the agency may deny the requested accommodation.

Q: Can an agency grant an extension to the deadline for vaccination due to a documented medical necessity even if the employee does not meet the legal definition of "disability" to be entitled to an accommodation?

A: Even in cases where the employee does not meet the legal definition of "disability" to be entitled to an accommodation under the Rehabilitation Act, in some limited circumstances an agency may grant an extension to a vaccination deadline based upon other medical considerations. For example, as explained in a separate FAQ, the CDC [recommends](#) delaying COVID-19 vaccination for at least 90 days after receiving monoclonal antibodies or convalescent plasma for COVID-19 treatment. Agencies that receive documented medical reasons that may not qualify as a disability but that necessitate a delay in vaccination should grant extensions but specify, consistent with the nature of the medical necessity, by what date the employee must be fully vaccinated.

Agencies should take note that an individual's medical need should be considered on a case-by-case basis, including any medical evaluation that addresses the individual's particular circumstance.

Q: What medical conditions does the CDC consider a contraindication to vaccination with COVID-19 vaccines?

A: The CDC considers a history of the following medical conditions to be [contraindications](#) to vaccination with COVID-19 vaccines:

- Severe allergic reaction (e.g., anaphylaxis) after a previous dose or to a component of the COVID-19 vaccine; and
- Immediate allergic reaction of any severity to a previous dose or known (diagnosed) allergy to a component of the COVID-19 vaccine.

If an individual is allergic to a component of one or more COVID-19 vaccines, that individual may not be allergic to components in all COVID-19 vaccines.

Q: Are there circumstances that the CDC recommends delaying vaccination for COVID-19?

A: Yes. In the following circumstances, the CDC [recommends](#) delaying vaccination for COVID-19 for adults:

- Vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms), and they have met [criteria](#) to discontinue isolation.
- People with a history of multisystem inflammatory syndrome in adults (MIS-A) should consider delaying vaccination until they have recovered from their illness and for 90 days after the date of diagnosis of MIS-A.
- Vaccination should be delayed for 90 days after receiving monoclonal antibodies or convalescent plasma for COVID-19 treatment.
- Whenever possible, mRNA COVID-19 vaccination doses (including the primary series and an additional dose) or the single dose Johnson and Johnson (J&J)/Janssen vaccine should be completed at least two weeks before initiation or resumption of immunosuppressive therapies, but timing of COVID-19 vaccination should take into consideration current or planned immunosuppressive therapies and optimization of both the patient's medical condition and response to vaccine. A patient's clinical team is best positioned to determine the degree of immune compromise and appropriate timing of vaccination.
- People who develop myocarditis or pericarditis after a dose of an mRNA COVID-19 vaccine should delay receiving a subsequent dose. People who choose to receive a subsequent dose should wait until myocarditis has completely resolved.
- People who have a history of myocarditis or pericarditis unrelated to mRNA COVID-19

vaccination may receive any currently FDA-approved or FDA-authorized COVID-19 vaccine after the episode of myocarditis or pericarditis has completely resolved. This includes resolution of symptoms attributed to myocarditis or pericarditis, as well as no evidence of ongoing heart inflammation or sequelae as determined by the person's clinical team, which may include a cardiologist, and special testing to assess cardiac recovery.

This is not an exhaustive list of the circumstances in which clinical considerations may recommend in favor of delaying vaccination.

In circumstances in which delay pursuant to these clinical considerations means that an employee is not fully vaccinated by November 22, 2021, the agency should require that individual to receive their first (or if a one-dose series, only) dose no later than two weeks after clinical considerations no longer recommend delay. If receiving a two-dose series, the employee should be required to receive the second dose within 6 weeks of receiving the first dose. If the employee already received a first dose of a two-dose series, they should be required to receive their second dose no later than two weeks after clinical considerations no longer recommend delay.

During the period in which vaccination is delayed, an employee must follow applicable masking, physical distancing, and testing protocols for not fully vaccinated individuals, as well as applicable travel guidance. There may be circumstances in which an agency determines that the nature of an employee's job responsibilities requires heightened safety protocols during the intervening time.

Q: Is vaccination for COVID-19 recommended for people who are trying to get pregnant or might become pregnant in the future?

A: Yes. The CDC has [stated](#) that COVID-19 vaccination is recommended for people who are trying to get pregnant now or might become pregnant in the future, as well as their partners.

Q: Does the CDC recommend that an employee delay vaccination due to pregnancy?

A: The CDC recommends COVID-19 vaccination for [people who are pregnant, breastfeeding, trying to become pregnant now, or trying to become pregnant in the future](#). The American College of Obstetricians and Gynecologists and Society for Maternal-Fetal Medicine [recommend](#) that all pregnant individuals be vaccinated against COVID-19. However, an agency may allow such an employee to delay vaccination based on the employee's particular medical circumstances, consistent with the agency's process for reviewing delay

requests.

Q: Is an employee who has had a prior COVID-19 infection required to be fully vaccinated?

A: Yes, an employee who has had a prior COVID-19 infection is required to be fully vaccinated. The CDC recommends that vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms) and has satisfied the [criteria](#) to discontinue isolation.

Q: Can an employee delay a COVID-19 vaccine because they have recently received another vaccine, such as the seasonal influenza vaccine?

A: COVID-19 vaccines may be administered without regard to timing of other vaccines. This includes simultaneous administration of COVID-19 vaccine and other vaccines on the same day.

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information NEW AND UPDATED

Limited Exceptions to Vaccination Requirement

Enforcement of Vaccination Requirement for Employees

Q: What steps may an agency take if a Federal employee refuses to be vaccinated or provide proof of vaccination?

A: Employees covered by Executive Order 14043 who fail to comply with a requirement to be fully vaccinated or provide proof of vaccination and have neither received an exception or

extension nor have an exception or extension request under consideration, are in violation of a lawful order. Employees who violate lawful orders are subject to discipline, up to and including termination or removal.

Consistent with the Administration's policy, agencies should initiate an enforcement process to work with employees to achieve their compliance. Accordingly, agencies should initiate the enforcement process with an appropriate period of education and counseling, including providing employees with information regarding [the benefits of vaccination](#) and [ways to obtain the vaccine](#). If the employee does not demonstrate progress toward becoming fully vaccinated through completion of a required vaccination dose or provision of required documentation by the end of the counseling and education period, agencies may issue a letter of reprimand, followed by a short suspension (generally, 14 days or less). Continued noncompliance during the suspension can be followed by proposing removal.

Operational needs of agencies and the circumstances affecting a particular employee may warrant departure from these guidelines if necessary, including whether to expedite or extend the enforcement process. For example, agencies may consider the length of the education and counseling period or following an initial brief suspension (14 days or less) with a longer second suspension (15 days or more), rather than moving from a first suspension to proposal of removal. That said, consistency across Government in enforcement of this Government-wide vaccine policy is desired, and the Executive Order does not permit exceptions from the vaccination requirement except as required by law.

Agencies may initiate the enforcement process for employees who fail to submit documentation to show that they have completed receiving required vaccination dose(s), as long as those employees have not received an exception or extension, or the agency is not considering an exception or extension request from the employee.

If an employee responds at any phase of the enforcement process by submitting proof of progress toward full vaccination (i.e., completion of a required vaccination dose), the agency should hold the discipline in abeyance to afford the employee a reasonable period of time to become fully vaccinated.

In pursuing any adverse action, the agency must provide the required procedural rights to an employee and follow normal processes, including any agency policies or collective bargaining agreement requirements concerning disciplinary matters. Employees should not be placed on administrative leave while agencies are pursuing an adverse action for refusal to be vaccinated, but those employees will be required to follow safety protocols for employees who are not fully vaccinated when reporting to agency worksites.

If the employee claims a legally required exception, or a medical circumstance that necessitates delay of vaccination, as the reason for not being vaccinated, an agency should follow its ordinary process to review and consider what, if any, accommodation it must offer. All agency personnel designated to receive and review requests for accommodations should know how to handle requests consistent with applicable Federal law. If the employee's request for an exception or extension is denied, and the employee does not comply with the vaccination requirement in a timely manner, the agency may pursue disciplinary action, up to and including removal from Federal service.

OPM has issued [additional guidance](#) to further assist agencies with enforcing the vaccination requirement for Federal employees.

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Q: Can agencies incorporate vaccination requirements into contracts that are not covered by Executive Order 14042 (Ensuring Adequate COVID Safety Protocols for

Contractors)?

A: Yes. Agencies are strongly encouraged to incorporate vaccination requirements into contracts that are not covered by Executive Order 14042, consistent with applicable law. This might include, for example, incorporating vaccination requirements into contracts in advance of when they are otherwise required by the Executive Order or incorporating requirements into contracts that are not covered by the Executive Order, such as contracts under the Simplified Acquisition Threshold. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14042.

Q: Should agencies inquire regarding the vaccination status of onsite contractor employees?

A: Prior to contractor employees being subject to a contractual requirement to be vaccinated, agencies need to ask about the vaccination status of those onsite contractor employees. Onsite contractor employees must attest to the truthfulness of the response they provide. If an onsite contractor employee chooses not to provide a response, they will be treated as not fully vaccinated for the purpose of agency safety protocols. In requesting this information, agencies should comply with any applicable federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act.

Q: Do onsite contractor employees need to provide proof of a negative COVID-19 test?

A: Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees who are not fully vaccinated or who decline to provide information about their vaccination status must be able to provide proof of a negative COVID-19 test from no later than the previous 3 days prior when in a federal building or federally controlled worksite. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days when in a federal building unless required to by the agency testing program.

Q: How should an agency ask onsite contractor employees about their vaccination status?

A: Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees should be provided with the [Certification of Vaccination form](#) when they enter a federal building or federally controlled worksite.

Unless an agency has an existing system of records notice that permits it to collect and

maintain this information on its contractor employees, agencies will direct onsite contractor employees to complete the Certification of Vaccination form and keep it with them during their time on federal premises—they may be asked to show the form when in a federal building or federally controlled worksite and to a federal employee who oversees their work.

Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees who are not fully vaccinated (or who decline to disclose vaccination status) are required to be able to show proof of a negative COVID-19 test result from within the previous 3 days when in a federal building or federally controlled worksite. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days when in a federal building or federally controlled worksite unless required to by the agency testing program.

Agencies may email the Certification of Vaccination form to contractor employees in advance of their time on-site or utilize a unique tool or application to share the form with contractor employees and enable them to easily complete it, but the agency will not maintain Certification of Vaccination forms from contractor employees at this time unless an agency has a system of records notice that covers its collection of this information from onsite contractor employees. Any such collection, storage, or maintenance of the attestation disclosure forms may implicate the Privacy Act and Paperwork Reduction Act.

Prior to having a contractual requirement for its employees to be vaccinated and if authorized and consistent with the terms of the contract, an agency may work with a contractor to facilitate compliance by its onsite employees with the agency's safety protocols, such as by having the company attest that all onsite contractor employees are fully vaccinated.

Q: On or after January 18, 2022, when covered contractor employees are required to be fully vaccinated, will onsite verification of vaccination status be required for contractor employees as a condition of entry to GSA-controlled facilities?

A: No, onsite verification of contractor employee vaccination status will not be required as a condition to enter GSA-controlled facilities on or after January 18, 2022, regardless of whether the contractor has a contractual requirement to be vaccinated as of that date.

On or after January 18, 2022, security officers at GSA-controlled facilities will admit any contractor employee with a valid PIV card to the facility without requiring onsite proof of

vaccination. Onsite contractor employees without a valid PIV card will be considered visitors seeking to enter the facility for reasons other than to obtain a public service or benefit, and must follow the protocols for such individuals.

Onsite contractor employees must follow required workplace safety protocols while accessing the facility, such as mask wearing, physical distancing, and testing. The sponsoring Executive Branch agency will be responsible for ensuring contractor employee compliance with relevant workplace safety protocols.

Q: What workplace safety protocols should an agency apply to an onsite contractor employee who is not fully vaccinated because the contractor employee has been provided an exception to the vaccination requirement by their employer?

A: In most circumstances, an agency should require an onsite contractor employee who is not fully vaccinated to follow applicable masking, physical distancing, and testing protocols. However, there may be circumstances in which an agency determines that the nature of an onsite contractor employee's job responsibilities at a Federal workplace, or the location of their work at a Federal workplace, requires heightened safety protocols. In some cases, an agency may determine that the nature of an onsite contractor employee's responsibilities at a Federal workplace are such that no safety protocol other than vaccination is adequate—in that case, an onsite contractor employee who is not fully vaccinated would be unable to perform the requisite work at the Federal workplace. Such circumstances do not relieve the contractor from meeting all contractual requirements.

In order for agencies to assess appropriate safety measures for contractor employees in Federal workplaces, contractors subject to a contractual requirement for maintaining COVID-19 workplace safety protocols pursuant to Executive Order 14042 should generally notify their contracting officers when one of their employees who works onsite at a Federal workplace has received an exception to the requirement to be fully vaccinated.

Q: Should agencies inquire regarding the vaccination status of visitors to federal buildings?

A: Visitors to federal buildings should be asked to provide information about vaccination status. In requesting this information, agencies should comply with any applicable federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act. Visitors who are not fully vaccinated or who decline to provide information about their vaccination status must provide proof of a negative COVID-19 test from no later than the previous 3 days prior to entry to a federal building.

These requirements related to the provision of information about vaccination and provision of proof of a recent negative COVID-19 test do not apply to members of the public entering a federal building or federal land to obtain a public service or benefit. If they are not fully vaccinated, these visitors must comply with all relevant CDC guidance, including wearing a mask and physically distancing from other people.

Q: How should an agency ask visitors about their vaccination status?

A: Agencies should provide visitors with the [Certification of Vaccination form](#) when they enter a federal building or federally controlled indoor worksite. Agencies will direct visitors to complete the Certification of Vaccination form and keep it with them during their time on federal premises—visitors may be asked to show the form upon entry to a federal building or federally controlled indoor worksite. If they are not fully vaccinated or decline to answer, they will be required to show a negative COVID-19 test result from within the previous three days.

Agencies may email the Certification of Vaccination form to visitors in advance of arrival or utilize a tool or application to share the form with visitors and enable visitors to easily complete it, but the agency will not maintain Certification of Vaccination forms from visitors.

Individuals entering a federal building, federally controlled indoor worksite, or federal land to obtain a public service or benefit do not need to complete the form or show documentation of a negative COVID-19 test result. However, if they are not fully vaccinated, they must comply with all relevant CDC guidance and safety protocols, including mask-wearing and physical distancing requirements.

Q: Are visitors seeking to access GSA-controlled facilities required to be fully vaccinated for COVID-19 as a condition of entry?

A: No, visitors seeking to access GSA-controlled facilities are not required to be fully vaccinated for COVID-19 as a condition of entry. However, visitors must present a completed [Certification of Vaccination form](#) to the security officer as a condition of entry, and follow required workplace safety protocols while accessing the facility, such as mask wearing and physical distancing. Security officers will admit visitors to GSA-controlled facilities after being presented with the Certification of Vaccination Form. Security officers will not collect a visitor's Certification of Vaccination Form. Occupant agencies are responsible for providing the Certification of Vaccination Form to their visitors, determining the vaccination status of the visitor, and ensuring the visitor has the appropriate documentation associated

with their COVID-19 vaccination status.

Visitors wishing to enter the facility to obtain a public service or benefit do not need to present a completed Certification of Vaccination Form to the security officer as a condition of entry, although they are required to follow required safety protocols while accessing the facility, such as mask wearing and physical distancing.

Delivery drivers, couriers, U.S. Postal Service, Federal Express and United Parcel Service employees, and other “transient visitors”, meaning visitors accessing a facility for less than approximately 15 minutes who interact with very few people, are not required to present a completed Certification of Vaccination Form to the security officer as a condition of entry. They are required to follow required safety protocols while accessing the facility, such as mask wearing and physical distancing.

Additionally, emergency personnel responding to an emergency in a facility, as determined by GSA, a facility’s security officers, or individual occupant agencies within a facility, are not required to present a completed Certification of Vaccination Form to the security officer as a condition of entry. They are required to follow required safety protocols while accessing the facility.

Q: When will updated entry protocols related to vaccination status for visitors seeking to access GSA-controlled facilities take effect?

A: GSA Facility Managers and Lease Administration Managers will convene Facility Security Committees (FSCs), or equivalent security committees, as applicable, to discuss COVID-19 entry protocols for visitors to GSA-controlled facilities.

These protocols will go into effect on a facility-by-facility basis after the following conditions have been met:

- FSCs must provide the agency with protection responsibility for the facility, typically either the Department of Homeland Security - Federal Protective Service (DHS-FPS) or the Department of Justice - U.S. Marshals Service (DOJ-USMS), with a list of public services and benefits provided by all occupant agencies in the facility.
- GSA must post signage at facility entrances indicating that visitors seeking to access the facility for reasons other than to obtain a public service or benefit must present a completed Certification of Vaccination Form to the security officers as a condition of entry, and that visitors seeking to access the facility to obtain a public service or benefit must declare such to the security officers. The signage will also indicate that all visitors

are required to follow required safety protocols while accessing the facility, such as mask wearing and physical distancing.

The list of public services and benefits provided by all occupant agencies in the facility will be included in the post orders for the security officers, and security officers will admit visitors who indicate they are entering the facility to obtain a public service or benefit without a completed Certification of Vaccination Form, if the identified public service or benefit is on the list provided by the FSC. If there is a dispute over a particular public service or benefit, the visitor will need to contact the agency providing the public service or benefit for assistance. If occupant agency contact information signage is not currently posted at a GSA-controlled facility, GSA will post that signage at the same time that the visitor access signage is posted.

In GSA-controlled facilities with no onsite protection provided by either DHS-FPS or DOJ-USMS, occupant agencies are responsible for enforcement of visitor access protocols.

Q: What type of negative COVID-19 test result must a visitor or onsite contractor employee who is not fully vaccinated show documentation of in order to enter a federal building?

A: Agencies may determine what types of tests a visitor or onsite contractor employee who is not subject to a contractual requirement to be vaccinated can show documentation of in order to enter a federal building, provided that the tests are authorized by the U.S. Food and Drug Administration to detect current infection and produce a dated result.

Q: If an agency has a system of records notice that covers its collection of information on vaccination status from onsite contractor employees, can the agency collect that information?

A: Yes, if an agency has a system of records notice that covers its collection of the requisite information—as reflected in the [Certification of Vaccination form](#)—from onsite contractor employees consistent with the Privacy Act, it may do so. The agency should ensure such a collection is also consistent with the Paperwork Reduction Act. The agency should provide a means for individuals to update their vaccination status over time.

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Safety Protocols Related to Vaccination UPDATED**Q: Who is considered fully vaccinated?**

A: People are considered [fully vaccinated](#) for COVID-19 ≥ 2 weeks after they have received the second dose in a 2-dose series (Pfizer-BioNTech or Moderna), or ≥ 2 weeks after they have received a single-dose vaccine (Johnson and Johnson (J&J)/Janssen). There is currently no post-vaccination time limit on fully vaccinated status.

This guidance applies to COVID-19 vaccines currently either approved or authorized for emergency use by the U.S. Food and Drug Administration (Pfizer-BioNTech, Moderna, and Johnson & Johnson [J&J]/Janssen COVID-19 vaccines). This guidance can also be applied to COVID-19 vaccines that have been listed for emergency use by the World Health Organization (e.g., AstraZeneca/Oxford). More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

UPDATED Q: Can an employee who participates in a clinical trial for a COVID-19 vaccine be considered fully vaccinated?

A: Clinical trial participants within or outside the United States who are documented to have received the recommended primary series doses of a WHO-EUL COVID-19 vaccine (i.e., not placebo) that is not FDA-approved or FDA-authorized, or a vaccine that is not listed for emergency use by WHO but for which a U.S. data and safety monitoring board or equivalent has independently confirmed efficacy, can be considered fully vaccinated 2 weeks after they have completed the vaccine series. More information is available [here](#).

Q: Can an employee who has received a heterologous primary vaccine series be considered fully vaccinated?

A: Individuals can be considered fully vaccinated ≥ 2 weeks after receipt of the last dose if they have received any combination of two doses of an FDA approved or authorized or WHO emergency use listed COVID-19 two-dose series. For these purposes, the second dose in a two dose heterologous series must have been received no earlier than 17 days (21 days with a 4-day grace period) after the first dose.

Q: Are agencies required to establish different safety protocols for fully vaccinated and not fully vaccinated individuals?

A: Yes. [Fully vaccinated individuals](#) do not need to physically distance or have restrictions on

their official travel (although they still must comply with any local requirements and relevant CDC guidance for fully vaccinated individuals while traveling). Fully vaccinated individuals in areas of substantial or high transmission (see the [CDC COVID-19 Data Tracker County View](#)) need to wear a mask in public indoor settings. Fully vaccinated individuals in areas of low or moderate transmission do not need to wear a mask, unless required by state or local regulations or laws.

Fully vaccinated individuals might choose to wear a mask regardless of the level of transmission for a variety of reasons.

Some employees will not be vaccinated because they are legally entitled to a reasonable accommodation. Some onsite contractor employees may not yet be subject to a contractual requirement to be vaccinated. Individuals who are not fully vaccinated or who decline to provide information about their vaccination status must wear masks regardless of community transmission level, physically distance, and comply with travel requirements for not fully vaccinated individuals

Prior to being subject to a contractual requirement to be vaccinated, onsite contractor employees who are not fully vaccinated or who decline to provide information about their vaccination status must be able to provide proof of a negative COVID-19 test from no later than the previous 3 days when in a federal building or federally controlled worksite. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to provide proof of a negative COVID-19 test from no later than the previous 3 days when in a federal building or federally controlled worksite unless required to by the agency testing program.

Q: Prior to an employee being fully vaccinated, what protocols should that individual follow?

A: Federal employees who are not fully vaccinated must comply with all agency requirements for individuals who are not fully vaccinated, including those requirements related to masking, physical distancing, and travel, subject to any legally required reasonable accommodation. In determining safety protocols for employees ahead of the deadline for employee vaccination, agencies can use information from vaccination attestations submitted by employees, or other information that the agency has on the vaccination status of employees (for example, information available to the agency because the agency administered the vaccine to an employee or the agency conducted a survey of its employees regarding vaccination status) consistent with the requirements of the Privacy Act.

Where the agency already has the requisite information regarding vaccination status, it can utilize that information for purposes of determining the proper safety protocols to apply to that individual. When an employee discloses that they are not fully vaccinated, or if an agency does not know the vaccination status of an employee, agencies should follow the protocols for an individual who is not fully vaccinated for purposes of implementing safety measures.

Q: If a federal employee seeks to enter space under the control of another agency, must they complete a Certification of Vaccination form at that agency?

A: Yes, federal employees are treated as visitors during their visit to another agency, meaning they would need to complete a [Certification of Vaccination form](#) and, if they are not fully vaccinated, they would need to show proof of a negative COVID-19 test result within the past 3 days. As with other visitors, the employee should keep the form with them during their time onsite at the other agency.

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Vaccinations

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Vaccination Requirement for Federal Employees

Q: By what date do Federal employees need to be fully vaccinated?

A: Federal employees need to be fully vaccinated by November 22, 2021.

Employees will be considered [fully vaccinated](#) for COVID-19 2 weeks after they have received the requisite number of doses of a COVID-19 vaccine approved or authorized for emergency use by the U.S. Food and Drug Administration or that has been listed for emergency use by the World Health Organization. For Pfizer-BioNTech, Moderna, or AstraZeneca/Oxford, that is 2 weeks after an employee has received the second dose in a 2-dose series. For Johnson and Johnson (J&J)/Janssen, that is 2 weeks after an employee has received a single-dose.

More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

Q: By what date do Federal employees need to have had their doses of a COVID-19 vaccination?

A: Federal employees must receive their last dose of their vaccine no later than November 8, 2021, to meet the November 22, 2021 deadline to be fully vaccinated.

The timing between the first and second shots [depends on which vaccine is received](#).

If someone receives the:

- Pfizer-BioNTech COVID-19 vaccine, then that person should get their second shot 3 weeks (or 21 days) after the first. This means for Federal employees to meet the vaccination deadline, they should receive their first vaccination no later than October 18. They would not be eligible for the second dose until November 8, which is the deadline by which they need to have received both shots.
- Moderna COVID-19 vaccine, then that person should get their second shot 4 weeks (or 28 days) after their first. This means for Federal employees to meet the vaccination deadline, they should receive their first vaccination no later than October 11. They would not be eligible for the second dose until November 8, which is the deadline by which they need to have received both shots.

Since the Johnson & Johnson vaccine only has one shot, Federal employees have until November 8 to receive that shot and still meet the November 22, 2021 deadline to be fully vaccinated.

Depending on employees' locations, they may not have all types of vaccines available to them. Agencies should encourage employees to plan ahead and allow enough time to receive all required vaccine doses before the November 8 deadline to have their second shot.

Q: By what date do individuals who start their government service after November 22, 2021 need to be fully vaccinated?

A: Agencies should require that individuals who start their government service after November 22, 2021, be [fully vaccinated](#) prior to their start date, except in limited circumstances where an accommodation is legally required. Agencies should require documentation to prove vaccination prior to the enter on-duty date. However, should an agency have an urgent, mission-critical hiring need to onboard new staff prior to those new staff becoming fully vaccinated, the agency head may delay the vaccination requirement—in

the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: How does the requirement for federal employees to be [fully vaccinated](#) apply to individuals who start their employment after the issuance of EO 14043 but prior to November 22, 2021?

A: Agencies should require that individuals who start their government service prior to November 22, 2021 be fully vaccinated by November 22, 2021, except in limited circumstances where an accommodation is legally required. Should an agency have an urgent, mission-critical hiring need to onboard new staff who cannot be fully vaccinated by November 22, 2021, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

As soon as possible, agencies should ensure that individuals who will or may start their government service prior to November 22, 2021, are aware of the requirement to be fully vaccinated by that date and how to seek an exception required by law to the vaccination requirement. OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: To what types of Federal employees does the vaccination requirement apply?

A: The vaccination requirement in Executive Order 14043 (Requiring Coronavirus Disease 2019 Vaccination for Federal Employees) covers employees as defined in 5 U.S.C. 2105 (including an employee paid from nonappropriated funds as referenced in 5 U.S.C. 2105(c)). Agencies are strongly encouraged to require vaccinations for any employees or other personnel working under an agreement with an agency not covered by the Executive Order, consistent with applicable law and in consultation with the Safer Federal Workforce Task Force. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14043.

Q: Does the requirement to be vaccinated apply to Federal employees who are not reporting to the worksite (e.g., are on maximum telework or working remotely)?

A: Yes. To protect the health and safety of the Federal workforce and to promote the efficiency of the civil service, all Federal employees covered by Executive Order 14043 and without a legally required exception need to be [fully vaccinated](#) by November 22, 2021, regardless of where they are working. Employees who are on maximum telework or working remotely are not excused from this requirement, including because employees working offsite may interact with the public as part of their duties and agencies may need to recall employees who are on maximum telework or working remotely.

Q: Do agencies need to provide onsite vaccinations to their employees?

A: No. Agencies should take steps to make their employees aware of convenient opportunities to be vaccinated. Given the [widespread availability of vaccinations](#), it is not required that agencies provide vaccinations at their facilities or worksites, although agencies may choose to do so.

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information **UPDATED**

Q: Must agencies require documentation from employees to prove vaccination status?

A: Yes, agencies must require documentation from employees to prove vaccination, even if an employee has previously attested to their vaccination status. Employees may provide a copy of the record of immunization from a health care provider or pharmacy, a copy of the COVID-19 Vaccination Record Card, a copy of medical records documenting the vaccination, a copy of immunization records from a public health or state immunization information system, or a copy of any other official documentation containing required data points (the required data points for such other official documentation are the type of vaccine administered, date(s) of administration, and the name of the health care professional(s) or

clinic site(s) administering the vaccine(s)). Employees must certify under penalty of perjury that the documentation they are submitting is true and correct.

Employees may provide a digital copy of such records, including, for example, a digital photograph, scanned image, or PDF of such a record that clearly and legibly displays the information outlined above. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and Rehabilitation Act of 1973.

Q: What steps should an agency take when an employee has lost or does not have a copy of required vaccination documentation?

A: If an employee states that they have lost their vaccination documentation or do not have a copy of it, the agency should direct the employee to contact the vaccination provider site where they received their vaccine. If the location where the employee received their COVID-19 vaccine is no longer operating, the employee should contact their health care provider, who, in most cases, can access a State or local health department's immunization information system (IIS) for the employee's record. In many States or localities, the employees may themselves be able to get their record by directly contacting the State or local health department's IIS. Employees should contact their State or local health department if they have additional questions about vaccination cards or vaccination records.

If an employee was vaccinated in another country, the agency should direct the employee to contact the vaccination provider site where they received their vaccine for information on how to obtain records. Alternatively, the employee should contact the appropriate health department in that country.

If an employee who claims they are fully vaccinated is able to demonstrate to the agency a good faith effort to locate required documentation, the agency can hold any disciplinary action associated with failure to comply with the vaccination requirement in abeyance for a short period of time, pending the employee's submission of documentation providing proof of vaccination.

Q: Can an employee provide a recent antibody test in order to prove vaccination status?

A: No. An employee must provide the required documentation for proof of vaccination. A recent antibody test cannot be used to prove vaccination status.

Q: Should agencies request and maintain information about whether employees are up to date with COVID-19 vaccines, including collection of documentation of additional primary series doses and booster shots from employees?

A: Safety protocols related to quarantine are contingent in part on whether one is [up to date with COVID-19 vaccines](#), including recommended additional [primary series doses](#) and [booster shots](#). To facilitate implementation of safety protocols, agencies should take steps to maintain information about whether employees are up to date with COVID-19 vaccines, including information about whether they have had recommended additional primary series doses or booster shots, including collection of documentation of proof, as part of broader agency processes and systems for maintaining information on employee vaccination status. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and Rehabilitation Act of 1973. Agencies should consult with their legal counsel and labor relations staff to determine any collective bargaining obligations.

Q: How should agencies maintain documentation provided by employees regarding vaccination?

A: Agencies should collect certain information necessary to verify that an employee is fully vaccinated. This information should include the type of vaccine administered, the number of required primary series doses received, date of administration of each required primary series dose, and the submission of an approved form of required documentation, as set forth in this guidance. When providing this information, employees should also be required to certify under penalty of perjury that the information they are submitting is true and correct.

Agencies have unique operational environments and may develop their own processes to both collect and maintain the required information, in compliance with all applicable laws and in accordance with their agency record management policies. Accordingly, agencies may develop and use new processes, systems, tools, and applications to collect and maintain the required information or choose to leverage existing processes, systems, tools, or applications previously established to collect Certification of Vaccination forms. Agency systems, processes, tools, and applications for the collection of this information should allow an employee to update their vaccination status and related information.

To support implementation of safety protocols, agencies also should collect information regarding whether their employees are up to date with COVID-19 vaccines, including, for

example, the type of vaccine administered, the number of additional primary series doses or booster shots received, date of administration of each additional primary series dose or booster shot, and the submission of documentation showing proof of additional primary series doses or booster shots.

The collection and use of this information for many agencies is subject to the OPM/GOVT-10 Employee Medical File system of records notice (SORN) and OPM regulations (5 C.F.R. part 293, subpart E). Under those rules, each agency should have written instructions for its EMF system with appropriate safeguards. Employees should be provided with a Privacy Act statement at the point of collection of this information. Agencies that are not subject to OPM's regulations (or who employ categories of employees not covered by OPM/GOVT-10) should give their employees an alternative [Privacy Act statement](#). As a general rule, this information should not be maintained in the Official Personnel Folder.

Agencies are encouraged to take steps to promote privacy and IT security, while also providing the relevant information to those who need to know in order to implement the safety protocols. Agencies should consult with their Agency Records Officer, Chief Information Officer, Senior Agency Official for Privacy, and agency's legal counsel to determine the best means to maintain this information to meet the agency's needs.

Q: Which individuals within an agency should have access to information on employees' vaccination status?

A: The Privacy Act permits disclosure within the agency to employees "who have a need for the record in the performance of their duties." 5 U.S.C. 552a(b)(1). Agencies should only disseminate information to the appropriate agency officials who have a need to know to ensure effective implementation of the safety protocols, which, in many cases, will include the supervisor level. Agencies must comply with the requirements of the Privacy Act at all times. Agencies should consult with their Senior Agency Official for Privacy on any questions related to Privacy Act requirements.

Q: Is onsite verification of vaccination status for Federal employees required as a condition of entry to GSA-controlled facilities?

A: No, onsite verification of a Federal employee's COVID-19 vaccination status is not required as a condition to enter GSA-controlled facilities. Security officers at GSA-controlled facilities will admit any Federal employee with a valid PIV card to the facility without requiring onsite proof of vaccination.

Enforcement of applicable workplace safety protocols, including any required testing for

Federal employees with approved or pending exceptions, are the responsibility of occupant agencies.

UPDATED Q: Should agencies require documentation from onsite contractor employees to verify their attestation of vaccination status?

A: When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, onsite contractor employees should attest to their vaccination status by being able to present a completed [Certification of Vaccination form](#) while in that Federal facility.

Agencies should not ask onsite contractor employees for documentation to verify their attestation. When a contractor employee declines to complete the attestation, agencies should treat that individual as not fully vaccinated for purposes of implementing its safety protocols.

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information **UPDATED**

Limited Exceptions to Vaccination Requirement

Q: Are there exceptions to the requirement for all employees to be fully vaccinated?

A: Federal employees must be fully vaccinated other than in limited circumstances where the law requires an exception. In particular, an agency may be required to provide a reasonable accommodation to employees who communicate to the agency that they are not vaccinated against COVID-19 because of a disability or because of a sincerely held religious belief, practice, or observance. Determining whether an exception is legally required will include consideration of factors such as the basis for the claim; the nature of

the employee's job responsibilities; and the reasonably foreseeable effects on the agency's operations, including protecting other agency employees and the public from COVID-19. Because such assessments will be fact- and context-dependent, agencies are encouraged to consult their offices of general counsel with questions related to assessing and implementing any such requested accommodations.

Q: Should agencies establish a date by which employees should notify agencies that they are seeking a legally required exception to the requirement to not be fully vaccinated?

A: Yes. In order to ensure that agencies can fully understand the effect of accommodation requests on their operations and to seek to ensure timely review of requests for an accommodation, agencies should establish a date by which employees should as a general matter notify agencies that they are seeking a legally required exception to the requirement to be fully vaccinated. Employees can submit requests for an exception after the date established by the agency.

Q: Should agencies provide employees who are seeking a legally required exception to the vaccination requirement with a form?

A: Yes. Agencies can refer to the following templates to develop a form for employees who are seeking an exception based on a [medical condition](#) (*template issued October 4, 2021*) or based on [religion](#) (*template updated October 29, 2021*). The information on the forms may be used by the agency to help determine whether the employee is entitled to an accommodation. The agency may also ask for other information as needed to determine if the individual is legally entitled to an accommodation. Agencies should consult with their senior agency official for privacy and their office of general counsel to address all legal considerations and privacy requirements in developing their forms, including but not limited to an appropriate Privacy Act Statement. Agencies should comply with any applicable recordkeeping and other requirements.

Q: If an employee requests an accommodation, and that accommodation is denied, how long should the employee be afforded to be fully vaccinated?

A: Agencies should require that an employee whose request for an accommodation is denied receive their first (or, if a one-dose series, only) dose within two weeks of the final determination to deny the accommodation. If receiving a two-dose series, the employee must receive the second dose within 6 weeks of receiving the first dose.

If the employee received a first dose of a two-dose series prior to seeking an

accommodation, agencies should require that the employee receive their second dose within two weeks of the final determination to deny the accommodation or within a week of the earliest day by which they can receive their second dose, whichever is later.

Q: If a Federal employee is not fully vaccinated due to a pending or approved request for an exception or extension to the COVID-19 vaccination requirement for Federal employees, what workplace safety protocols should that individual follow?

A: Generally, Federal employees who are not fully vaccinated because they have a pending or approved request for an exception or extension to the COVID-19 vaccination requirement for Federal employees should follow applicable masking, physical distancing, and testing protocols, as well as applicable travel guidance. There may be circumstances in which an agency determines that the nature of an employee's job responsibilities requires heightened safety protocols if they are provided with a legally required exception or extension. In some cases, the nature of the employee's job may be such that an agency determines that no safety protocol other than vaccination is adequate. In such circumstances, the agency may deny the requested accommodation.

Q: Can an agency grant an extension to the deadline for vaccination due to a documented medical necessity even if the employee does not meet the legal definition of "disability" to be entitled to an accommodation?

A: Even in cases where the employee does not meet the legal definition of "disability" to be entitled to an accommodation under the Rehabilitation Act, in some limited circumstances an agency may grant an extension to a vaccination deadline based upon other medical considerations. For example, as explained in a separate FAQ, the CDC [recommends](#) delaying COVID-19 vaccination for at least 90 days after receiving monoclonal antibodies or convalescent plasma for COVID-19 treatment. Agencies that receive documented medical reasons that may not qualify as a disability but that necessitate a delay in vaccination should grant extensions but specify, consistent with the nature of the medical necessity, by what date the employee must be fully vaccinated.

Agencies should take note that an individual's medical need should be considered on a case-by-case basis, including any medical evaluation that addresses the individual's particular circumstance.

Q: What medical conditions does the CDC consider a contraindication to vaccination with COVID-19 vaccines?

A: The CDC considers a history of the following medical conditions to be [contraindications](#)

to vaccination with COVID-19 vaccines:

- Severe allergic reaction (e.g., anaphylaxis) after a previous dose or to a component of the COVID-19 vaccine; and
- Immediate allergic reaction of any severity to a previous dose or known (diagnosed) allergy to a component of the COVID-19 vaccine.

If an individual is allergic to a component of one or more COVID-19 vaccines, that individual may not be allergic to components in all COVID-19 vaccines.

Q: Are there circumstances that the CDC recommends delaying vaccination for COVID-19?

A: Yes. In the following circumstances, the CDC [recommends](#) delaying vaccination for COVID-19 for adults:

- Vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms), and they have met [criteria](#) to discontinue isolation.
- People with a history of multisystem inflammatory syndrome in adults (MIS-A) should consider delaying vaccination until they have recovered from their illness and for 90 days after the date of diagnosis of MIS-A.
- Vaccination should be delayed for 90 days after receiving monoclonal antibodies or convalescent plasma for COVID-19 treatment.
- Whenever possible, mRNA COVID-19 vaccination doses (including the primary series and an additional dose) or the single dose Johnson and Johnson (J&J)/Janssen vaccine should be completed at least two weeks before initiation or resumption of immunosuppressive therapies, but timing of COVID-19 vaccination should take into consideration current or planned immunosuppressive therapies and optimization of both the patient's medical condition and response to vaccine. A patient's clinical team is best positioned to determine the degree of immune compromise and appropriate timing of vaccination.
- People who develop myocarditis or pericarditis after a dose of an mRNA COVID-19 vaccine should delay receiving a subsequent dose. People who choose to receive a subsequent dose should wait until myocarditis has completely resolved.
- People who have a history of myocarditis or pericarditis unrelated to mRNA COVID-19 vaccination may receive any currently FDA-approved or FDA-authorized COVID-19 vaccine after the episode of myocarditis or pericarditis has completely resolved. This

includes resolution of symptoms attributed to myocarditis or pericarditis, as well as no evidence of ongoing heart inflammation or sequelae as determined by the person's clinical team, which may include a cardiologist, and special testing to assess cardiac recovery.

This is not an exhaustive list of the circumstances in which clinical considerations may recommend in favor of delaying vaccination.

In circumstances in which delay pursuant to these clinical considerations means that an employee is not fully vaccinated by November 22, 2021, the agency should require that individual to receive their first (or if a one-dose series, only) dose no later than two weeks after clinical considerations no longer recommend delay. If receiving a two-dose series, the employee should be required to receive the second dose within 6 weeks of receiving the first dose. If the employee already received a first dose of a two-dose series, they should be required to receive their second dose no later than two weeks after clinical considerations no longer recommend delay.

During the period in which vaccination is delayed, an employee must follow applicable masking, physical distancing, and testing protocols for not fully vaccinated individuals, as well as applicable travel guidance. There may be circumstances in which an agency determines that the nature of an employee's job responsibilities requires heightened safety protocols during the intervening time.

Q: Is vaccination for COVID-19 recommended for people who are trying to get pregnant or might become pregnant in the future?

A: Yes. The CDC has [stated](#) that COVID-19 vaccination is recommended for people who are trying to get pregnant now or might become pregnant in the future, as well as their partners.

Q: Does the CDC recommend that an employee delay vaccination due to pregnancy?

A: The CDC recommends COVID-19 vaccination for [people who are pregnant, breastfeeding, trying to become pregnant now, or trying to become pregnant in the future](#). The American College of Obstetricians and Gynecologists and Society for Maternal-Fetal Medicine [recommend](#) that all pregnant individuals be vaccinated against COVID-19. However, an agency may allow such an employee to delay vaccination based on the employee's particular medical circumstances, consistent with the agency's process for reviewing delay requests.

Q: Is an employee who has had a prior COVID-19 infection required to be fully vaccinated?

A: Yes, an employee who has had a prior COVID-19 infection is required to be fully vaccinated. The CDC recommends that vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms) and has satisfied the [criteria](#) to discontinue isolation.

Q: Can an employee delay a COVID-19 vaccine because they have recently received another vaccine, such as the seasonal influenza vaccine?

A: COVID-19 vaccines may be administered without regard to timing of other vaccines. This includes simultaneous administration of COVID-19 vaccine and other vaccines on the same day.

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information **UPDATED**

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Enforcement of Vaccination Requirement for Employees

Q: What steps may an agency take if a Federal employee refuses to be vaccinated or provide proof of vaccination?

A: Employees covered by Executive Order 14043 who fail to comply with a requirement to be fully vaccinated or provide proof of vaccination and have neither received an exception or extension nor have an exception or extension request under consideration, are in violation

of a lawful order. Employees who violate lawful orders are subject to discipline, up to and including termination or removal.

Consistent with the Administration's policy, agencies should initiate an enforcement process to work with employees to achieve their compliance. Accordingly, agencies should initiate the enforcement process with an appropriate period of education and counseling, including providing employees with information regarding [the benefits of vaccination](#) and [ways to obtain the vaccine](#). If the employee does not demonstrate progress toward becoming fully vaccinated through completion of a required vaccination dose or provision of required documentation by the end of the counseling and education period, agencies may issue a letter of reprimand, followed by a short suspension (generally, 14 days or less). Continued noncompliance during the suspension can be followed by proposing removal.

Operational needs of agencies and the circumstances affecting a particular employee may warrant departure from these guidelines if necessary, including whether to expedite or extend the enforcement process. For example, agencies may consider the length of the education and counseling period or following an initial brief suspension (14 days or less) with a longer second suspension (15 days or more), rather than moving from a first suspension to proposal of removal. That said, consistency across Government in enforcement of this Government-wide vaccine policy is desired, and the Executive Order does not permit exceptions from the vaccination requirement except as required by law.

Agencies may initiate the enforcement process for employees who fail to submit documentation to show that they have completed receiving required vaccination dose(s), as long as those employees have not received an exception or extension, or the agency is not considering an exception or extension request from the employee.

If an employee responds at any phase of the enforcement process by submitting proof of progress toward full vaccination (i.e., completion of a required vaccination dose), the agency should hold the discipline in abeyance to afford the employee a reasonable period of time to become fully vaccinated.

In pursuing any adverse action, the agency must provide the required procedural rights to an employee and follow normal processes, including any agency policies or collective bargaining agreement requirements concerning disciplinary matters. Employees should not be placed on administrative leave while agencies are pursuing an adverse action for refusal to be vaccinated, but those employees will be required to follow safety protocols for employees who are not fully vaccinated when reporting to agency worksites.

If the employee claims a legally required exception, or a medical circumstance that necessitates delay of vaccination, as the reason for not being vaccinated, an agency should follow its ordinary process to review and consider what, if any, accommodation it must offer. All agency personnel designated to receive and review requests for accommodations should know how to handle requests consistent with applicable Federal law. If the employee's request for an exception or extension is denied, and the employee does not comply with the vaccination requirement in a timely manner, the agency may pursue disciplinary action, up to and including removal from Federal service.

OPM has issued [additional guidance](#) to further assist agencies with enforcing the vaccination requirement for Federal employees.

Onsite Contractor Employees UPDATED

Labor Relations Related to Vaccination

Safety Protocols Related to Vaccination UPDATED

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Vaccinations

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information **UPDATED**

Limited Exceptions to Vaccination Requirement

Enforcement of Vaccination Requirement for Employees

Onsite Contractor Employees **UPDATED**

Q: Can agencies incorporate vaccination requirements into contracts that are not covered by Executive Order 14042 (Ensuring Adequate COVID Safety Protocols for Contractors)?

A: Yes. Agencies are strongly encouraged to incorporate vaccination requirements into contracts that are not covered by Executive Order 14042, consistent with applicable law. This might include, for example, incorporating vaccination requirements into contracts in advance of when they are otherwise required by the Executive Order or incorporating requirements into contracts that are not covered by the Executive Order, such as contracts under the Simplified Acquisition Threshold. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14042.

UPDATED Q: Should agencies inquire regarding the vaccination status of onsite contractor employees?

A: When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, agencies should ask about the vaccination status of contractor employees working onsite at that facility. Onsite contractor employees should attest to the truthfulness of the response they provide. If an onsite contractor employee chooses not to provide a response, they should be treated as not fully vaccinated for the purposes of implementing agency safety protocols. In requesting this information, agencies should comply with any applicable federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act.

UPDATED Q: Should onsite contractor employees provide proof of a negative COVID-19 test?

A: When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, onsite contractor employees who are not fully vaccinated or who decline to provide information about their vaccination status should be able to provide proof of a negative COVID-19 test from within the previous 3 days when in that facility. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to be able to provide proof of a negative COVID-19 test from within the previous 3 days when in a Federal facility unless required to by the agency testing program.

UPDATED Q: How should an agency ask onsite contractor employees about their vaccination status?

A: When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, onsite contractor employees should be provided with the [Certification of Vaccination form](#) when they enter that facility.

Unless an agency has an existing system of records notice that permits it to collect and maintain this information on its onsite contractor employees, agencies should direct onsite contractor employees to complete the Certification of Vaccination form and keep it with them during their time on Federal premises—they may be asked to show the form when in the Federal facility and to a Federal employee who oversees their work.

When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, onsite contractor employees who are not fully vaccinated (or who decline to disclose vaccination status) should be able to show proof of a negative COVID-19 test result from within the previous 3 days when in that facility. If a contractor employee is enrolled in an agency screening testing program, then they do not need to be able to provide proof of a negative COVID-19 test from within the previous 3 days when in a Federal facility unless required to by the agency screening testing program.

Agencies may email the Certification of Vaccination form to contractor employees in advance of their time on-site or utilize a tool or application to share the form with contractor employees and enable them to easily complete it, but the agency should not maintain Certification of Vaccination forms from contractor employees unless an agency has a system of records notice that covers its collection of this information from onsite contractor employees. Any such collection, storage, or maintenance of the attestation disclosure forms may implicate the Privacy Act and Paperwork Reduction Act.

Q: What workplace safety protocols should an agency apply to an onsite contractor employee who is not fully vaccinated because the contractor employee has been provided an exception to the vaccination requirement by their employer?

A: In most circumstances, an agency should require an onsite contractor employee who is not fully vaccinated to follow applicable masking, physical distancing, and testing protocols. However, there may be circumstances in which an agency determines that the nature of an onsite contractor employee's job responsibilities at a Federal workplace, or the location of their work at a Federal workplace, requires heightened safety protocols. In some cases, an agency may determine that the nature of an onsite contractor employee's responsibilities at a Federal workplace are such that no safety protocol other than vaccination is adequate—in that case, an onsite contractor employee who is not fully vaccinated would be unable to perform the requisite work at the Federal workplace. Such circumstances do not relieve the contractor from meeting all contractual requirements.

In order for agencies to assess appropriate safety measures for contractor employees in

Federal workplaces, contractors subject to a contractual requirement for maintaining COVID-19 workplace safety protocols pursuant to Executive Order 14042 should generally notify their contracting officers when one of their employees who works onsite at a Federal workplace has received an exception to the requirement to be fully vaccinated.

Q: When will updated entry protocols related to vaccination status for visitors seeking to access GSA-controlled facilities take effect?

A: GSA Facility Managers and Lease Administration Managers will convene Facility Security Committees (FSCs), or equivalent security committees, as applicable, to discuss COVID-19 entry protocols for visitors to GSA-controlled facilities.

These protocols will go into effect on a facility-by-facility basis after the following conditions have been met:

- FSCs must provide the agency with protection responsibility for the facility, typically either the Department of Homeland Security - Federal Protective Service (DHS-FPS) or the Department of Justice - U.S. Marshals Service (DOJ-USMS), with a list of public services and benefits provided by all occupant agencies in the facility.
- GSA must post signage at facility entrances indicating that visitors seeking to access the facility for reasons other than to obtain a public service or benefit must present a completed Certification of Vaccination Form to the security officers as a condition of entry, and that visitors seeking to access the facility to obtain a public service or benefit must declare such to the security officers. The signage will also indicate that all visitors are required to follow required safety protocols while accessing the facility, such as mask wearing and physical distancing.

The list of public services and benefits provided by all occupant agencies in the facility will be included in the post orders for the security officers, and security officers will admit visitors who indicate they are entering the facility to obtain a public service or benefit without a completed Certification of Vaccination Form, if the identified public service or benefit is on the list provided by the FSC. If there is a dispute over a particular public service or benefit, the visitor will need to contact the agency providing the public service or benefit for assistance. If occupant agency contact information signage is not currently posted at a GSA-controlled facility, GSA will post that signage at the same time that the visitor access signage is posted.

In GSA-controlled facilities with no onsite protection provided by either DHS-FPS or DOJ-USMS, occupant agencies are responsible for enforcement of visitor access protocols.

Q: If an agency has a system of records notice that covers its collection of information on vaccination status from onsite contractor employees, can the agency collect that information?

A: Yes, if an agency has a system of records notice that covers its collection of the requisite information—as reflected in the [Certification of Vaccination form](#)—from onsite contractor employees consistent with the Privacy Act, it may do so. The agency should ensure such a collection is also consistent with the Paperwork Reduction Act. The agency should provide a means for individuals to update their vaccination status over time.

Labor Relations Related to Vaccination

Safety Protocols Related to Vaccination UPDATED

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Vaccinations

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information **UPDATED**

Limited Exceptions to Vaccination Requirement

Enforcement of Vaccination Requirement for Employees

Onsite Contractor Employees **UPDATED**

Labor Relations Related to Vaccination

Safety Protocols Related to Vaccination UPDATED**Q: Who is considered fully vaccinated?**

A: People are considered [fully vaccinated](#) for COVID-19 ≥ 2 weeks after they have received the second dose in a 2-dose series (Pfizer-BioNTech or Moderna), or ≥ 2 weeks after they have received a single-dose vaccine (Johnson and Johnson (J&J)/Janssen). There is currently no post-vaccination time limit on fully vaccinated status.

This guidance applies to COVID-19 vaccines currently either approved or authorized for emergency use by the U.S. Food and Drug Administration (Pfizer-BioNTech, Moderna, and Johnson & Johnson [J&J]/Janssen COVID-19 vaccines). This guidance can also be applied to COVID-19 vaccines that have been listed for emergency use by the World Health Organization (e.g., AstraZeneca/Oxford). More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

Q: Can an employee who participates in a clinical trial for a COVID-19 vaccine be considered fully vaccinated?

A: Clinical trial participants within or outside the United States who are documented to have received the recommended primary series doses of a WHO-EUL COVID-19 vaccine (i.e., not placebo) that is not FDA-approved or FDA-authorized, or a vaccine that is not listed for emergency use by WHO but for which a U.S. data and safety monitoring board or equivalent has independently confirmed efficacy, can be considered fully vaccinated 2 weeks after they have completed the vaccine series. More information is available [here](#).

Q: Can an employee who has received a heterologous primary vaccine series be considered fully vaccinated?

A: Individuals can be considered fully vaccinated ≥ 2 weeks after receipt of the last dose if they have received any combination of two doses of an FDA approved or authorized or WHO emergency use listed COVID-19 two-dose series. For these purposes, the second dose in a two dose heterologous series must have been received no earlier than 17 days (21 days with a 4-day grace period) after the first dose.

UPDATED Q: If a Federal employee seeks to enter a facility under the control of another agency, should they complete a Certification of Vaccination form at that facility?

A: Yes, Federal employees generally are treated as visitors during their visit to a facility under the control of another agency, meaning when the [COVID-19 Community Level](#) in the county where the agency facility is located is MEDIUM or HIGH, they should complete a [Certification of Vaccination form](#) and, if they are not fully vaccinated or decline to provide their vaccination information, they should be able to show proof of a negative COVID-19 test result within the past 3 days. As with other visitors, the employee should keep the documentation with them during their time onsite at the other agency.

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Vaccinations

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Vaccination Requirement for Federal Employees

NOTE: FAQs related to the vaccination requirement pursuant to Executive Order 14043 are not being updated while an applicable preliminary nationwide injunction is in place. FAQs with out-of-date information have been removed at this time.

Q: By what date do Federal employees need to be fully vaccinated?

A: Federal employees need to be fully vaccinated by November 22, 2021.

Employees will be considered [fully vaccinated](#) for COVID-19 2 weeks after they have received the requisite number of doses of a COVID-19 vaccine approved or authorized for emergency use by the U.S. Food and Drug Administration or that has been listed for emergency use by the World Health Organization. For Pfizer-BioNTech, Moderna, or AstraZeneca/Oxford, that

is 2 weeks after an employee has received the second dose in a 2-dose series. For Johnson and Johnson (J&J)/Janssen, that is 2 weeks after an employee has received a single-dose.

More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

Q: By what date do individuals who start their government service after November 22, 2021 need to be fully vaccinated?

A: Agencies should require that individuals who start their government service after November 22, 2021, be [fully vaccinated](#) prior to their start date, except in limited circumstances where an accommodation is legally required. Agencies should require documentation to prove vaccination prior to the enter on-duty date. However, should an agency have an urgent, mission-critical hiring need to onboard new staff prior to those new staff becoming fully vaccinated, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: How does the requirement for federal employees to be [fully vaccinated](#) apply to individuals who start their employment after the issuance of EO 14043 but prior to November 22, 2021?

A: Agencies should require that individuals who start their government service prior to November 22, 2021 be fully vaccinated by November 22, 2021, except in limited circumstances where an accommodation is legally required. Should an agency have an urgent, mission-critical hiring need to onboard new staff who cannot be fully vaccinated by November 22, 2021, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

As soon as possible, agencies should ensure that individuals who will or may start their government service prior to November 22, 2021, are aware of the requirement to be fully vaccinated by that date and how to seek an exception required by law to the vaccination requirement. OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: To what types of Federal employees does the vaccination requirement apply?

A: The vaccination requirement in Executive Order 14043 (Requiring Coronavirus Disease 2019 Vaccination for Federal Employees) covers employees as defined in 5 U.S.C. 2105 (including an employee paid from nonappropriated funds as referenced in 5 U.S.C. 2105(c)). Agencies are strongly encouraged to require vaccinations for any employees or other personnel working under an agreement with an agency not covered by the Executive Order, consistent with applicable law and in consultation with the Safer Federal Workforce Task Force. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14043.

Q: Does the requirement to be vaccinated apply to Federal employees who are not reporting to the worksite (e.g., are on maximum telework or working remotely)?

A: Yes. To protect the health and safety of the Federal workforce and to promote the efficiency of the civil service, all Federal employees covered by Executive Order 14043 and without a legally required exception need to be [fully vaccinated](#) by November 22, 2021, regardless of where they are working. Employees who are on maximum telework or working remotely are not excused from this requirement, including because employees working offsite may interact with the public as part of their duties and agencies may need to recall employees who are on maximum telework or working remotely.

Q: Do agencies need to provide onsite vaccinations to their employees?

A: No. Agencies should take steps to make their employees aware of convenient opportunities to be vaccinated. Given the [widespread availability of vaccinations](#), it is not required that agencies provide vaccinations at their facilities or worksites, although agencies may choose to do so.

Vaccination Documentation and Information**Limited Exceptions to Vaccination Requirement****Enforcement of Vaccination Requirement for Employees**

Onsite Contractor Employees**Labor Relations Related to Vaccination****Safety Protocols Related to Vaccination** UPDATED

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Vaccinations

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information

Q: Must agencies require documentation from employees to prove vaccination status?

A: Yes, agencies must require documentation from employees to prove vaccination, even if an employee has previously attested to their vaccination status. Employees may provide a copy of the record of immunization from a health care provider or pharmacy, a copy of the COVID-19 Vaccination Record Card, a copy of medical records documenting the vaccination, a copy of immunization records from a public health or state immunization information system, or a copy of any other official documentation containing required data points (the required data points for such other official documentation are the type of vaccine administered, date(s) of administration, and the name of the health care professional(s) or

clinic site(s) administering the vaccine(s)). Employees must certify under penalty of perjury that the documentation they are submitting is true and correct.

Employees may provide a digital copy of such records, including, for example, a digital photograph, scanned image, or PDF of such a record that clearly and legibly displays the information outlined above. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and Rehabilitation Act of 1973.

Q: What steps should an agency take when an employee has lost or does not have a copy of required vaccination documentation?

A: If an employee states that they have lost their vaccination documentation or do not have a copy of it, the agency should direct the employee to contact the vaccination provider site where they received their vaccine. If the location where the employee received their COVID-19 vaccine is no longer operating, the employee should contact their health care provider, who, in most cases, can access a State or local health department's immunization information system (IIS) for the employee's record. In many States or localities, the employees may themselves be able to get their record by directly contacting the State or local health department's IIS. Employees should contact their State or local health department if they have additional questions about vaccination cards or vaccination records.

If an employee was vaccinated in another country, the agency should direct the employee to contact the vaccination provider site where they received their vaccine for information on how to obtain records. Alternatively, the employee should contact the appropriate health department in that country.

If an employee who claims they are fully vaccinated is able to demonstrate to the agency a good faith effort to locate required documentation, the agency can hold any disciplinary action associated with failure to comply with the vaccination requirement in abeyance for a short period of time, pending the employee's submission of documentation providing proof of vaccination.

Q: Can an employee provide a recent antibody test in order to prove vaccination status?

A: No. An employee must provide the required documentation for proof of vaccination. A recent antibody test cannot be used to prove vaccination status.

Q: Should agencies request and maintain information about whether employees are up to date with COVID-19 vaccines, including collection of documentation of additional primary series doses and booster shots from employees?

A: Safety protocols related to quarantine are contingent in part on whether one is [up to date with COVID-19 vaccines](#), including recommended additional [primary series doses](#) and [booster shots](#). To facilitate implementation of safety protocols, agencies should take steps to maintain information about whether employees are up to date with COVID-19 vaccines, including information about whether they have had recommended additional primary series doses or booster shots, including collection of documentation of proof, as part of broader agency processes and systems for maintaining information on employee vaccination status. In requesting this information, agencies should comply with any applicable Federal laws, including requirements under the Privacy Act and Rehabilitation Act of 1973. Agencies should consult with their legal counsel and labor relations staff to determine any collective bargaining obligations.

Q: How should agencies maintain documentation provided by employees regarding vaccination?

A: Agencies should collect certain information necessary to verify that an employee is fully vaccinated. This information should include the type of vaccine administered, the number of required primary series doses received, date of administration of each required primary series dose, and the submission of an approved form of required documentation, as set forth in this guidance. When providing this information, employees should also be required to certify under penalty of perjury that the information they are submitting is true and correct.

Agencies have unique operational environments and may develop their own processes to both collect and maintain the required information, in compliance with all applicable laws and in accordance with their agency record management policies. Accordingly, agencies may develop and use new processes, systems, tools, and applications to collect and maintain the required information or choose to leverage existing processes, systems, tools, or applications previously established to collect Certification of Vaccination forms. Agency systems, processes, tools, and applications for the collection of this information should allow an employee to update their vaccination status and related information.

To support implementation of safety protocols, agencies also should collect information regarding whether their employees are up to date with COVID-19 vaccines, including, for

example, the type of vaccine administered, the number of additional primary series doses or booster shots received, date of administration of each additional primary series dose or booster shot, and the submission of documentation showing proof of additional primary series doses or booster shots.

The collection and use of this information for many agencies is subject to the OPM/GOVT-10 Employee Medical File system of records notice (SORN) and OPM regulations (5 C.F.R. part 293, subpart E). Under those rules, each agency should have written instructions for its EMF system with appropriate safeguards. Employees should be provided with a Privacy Act statement at the point of collection of this information. Agencies that are not subject to OPM's regulations (or who employ categories of employees not covered by OPM/GOVT-10) should give their employees an alternative [Privacy Act statement](#). As a general rule, this information should not be maintained in the Official Personnel Folder.

Agencies are encouraged to take steps to promote privacy and IT security, while also providing the relevant information to those who need to know in order to implement the safety protocols. Agencies should consult with their Agency Records Officer, Chief Information Officer, Senior Agency Official for Privacy, and agency's legal counsel to determine the best means to maintain this information to meet the agency's needs.

Q: Which individuals within an agency should have access to information on employees' vaccination status?

A: The Privacy Act permits disclosure within the agency to employees "who have a need for the record in the performance of their duties." 5 U.S.C. 552a(b)(1). Agencies should only disseminate information to the appropriate agency officials who have a need to know to ensure effective implementation of the safety protocols, which, in many cases, will include the supervisor level. Agencies must comply with the requirements of the Privacy Act at all times. Agencies should consult with their Senior Agency Official for Privacy on any questions related to Privacy Act requirements.

Q: Is onsite verification of vaccination status for Federal employees required as a condition of entry to GSA-controlled facilities?

A: No, onsite verification of a Federal employee's COVID-19 vaccination status is not required as a condition to enter GSA-controlled facilities. Security officers at GSA-controlled facilities will admit any Federal employee with a valid PIV card to the facility without requiring onsite proof of vaccination.

Enforcement of applicable workplace safety protocols, including any required testing for

Federal employees with approved or pending exceptions, are the responsibility of occupant agencies.

Q: Should agencies require documentation from onsite contractor employees to verify their attestation of vaccination status?

A: When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, onsite contractor employees should attest to their vaccination status by being able to present a completed [Certification of Vaccination form](#) while in that Federal facility.

Agencies should not ask onsite contractor employees for documentation to verify their attestation. When a contractor employee declines to complete the attestation, agencies should treat that individual as not fully vaccinated for purposes of implementing its safety protocols.

Limited Exceptions to Vaccination Requirement

Enforcement of Vaccination Requirement for Employees

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Vaccination Requirement for Federal Employees

Vaccination Documentation and Information

Limited Exceptions to Vaccination Requirement

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Q: Are there exceptions to the requirement for all employees to be fully vaccinated?

A: Federal employees must be fully vaccinated other than in limited circumstances where

the law requires an exception. In particular, an agency may be required to provide a reasonable accommodation to employees who communicate to the agency that they are not vaccinated against COVID-19 because of a disability or because of a sincerely held religious belief, practice, or observance. Determining whether an exception is legally required will include consideration of factors such as the basis for the claim; the nature of the employee's job responsibilities; and the reasonably foreseeable effects on the agency's operations, including protecting other agency employees and the public from COVID-19. Because such assessments will be fact- and context-dependent, agencies are encouraged to consult their offices of general counsel with questions related to assessing and implementing any such requested accommodations.

Q: Should agencies establish a date by which employees should notify agencies that they are seeking a legally required exception to the requirement to not be fully vaccinated?

A: Yes. In order to ensure that agencies can fully understand the effect of accommodation requests on their operations and to seek to ensure timely review of requests for an accommodation, agencies should establish a date by which employees should as a general matter notify agencies that they are seeking a legally required exception to the requirement to be fully vaccinated. Employees can submit requests for an exception after the date established by the agency.

Q: Should agencies provide employees who are seeking a legally required exception to the vaccination requirement with a form?

A: Yes. Agencies can refer to the following templates to develop a form for employees who are seeking an exception based on a [medical condition](#) (*template issued October 4, 2021*) or based on [religion](#) (*template updated October 29, 2021*). The information on the forms may be used by the agency to help determine whether the employee is entitled to an accommodation. The agency may also ask for other information as needed to determine if the individual is legally entitled to an accommodation. Agencies should consult with their senior agency official for privacy and their office of general counsel to address all legal considerations and privacy requirements in developing their forms, including but not limited to an appropriate Privacy Act Statement. Agencies should comply with any applicable recordkeeping and other requirements.

Q: If an employee requests an accommodation, and that accommodation is denied, how long should the employee be afforded to be fully vaccinated?

A: Agencies should require that an employee whose request for an accommodation is denied receive their first (or, if a one-dose series, only) dose within two weeks of the final determination to deny the accommodation. If receiving a two-dose series, the employee must receive the second dose within 6 weeks of receiving the first dose.

If the employee received a first dose of a two-dose series prior to seeking an accommodation, agencies should require that the employee receive their second dose within two weeks of the final determination to deny the accommodation or within a week of the earliest day by which they can receive their second dose, whichever is later.

Q: Is vaccination for COVID-19 recommended for people who are trying to get pregnant or might become pregnant in the future?

A: Yes. The CDC has [stated](#) that COVID-19 vaccination is recommended for people who are trying to get pregnant now or might become pregnant in the future, as well as their partners.

Q: Does the CDC recommend that an employee delay vaccination due to pregnancy?

A: The CDC recommends COVID-19 vaccination for [people who are pregnant, breastfeeding, trying to become pregnant now, or trying to become pregnant in the future](#). The American College of Obstetricians and Gynecologists and Society for Maternal-Fetal Medicine [recommend](#) that all pregnant individuals be vaccinated against COVID-19. However, an agency may allow such an employee to delay vaccination based on the employee's particular medical circumstances, consistent with the agency's process for reviewing delay requests.

Q: Is an employee who has had a prior COVID-19 infection required to be fully vaccinated?

A: Yes, an employee who has had a prior COVID-19 infection is required to be fully vaccinated. The CDC recommends that vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms) and has satisfied the [criteria](#) to discontinue isolation.

Q: Can an employee delay a COVID-19 vaccine because they have recently received another vaccine, such as the seasonal influenza vaccine?

A: COVID-19 vaccines may be administered without regard to timing of other vaccines. This includes simultaneous administration of COVID-19 vaccine and other vaccines on the same

day.

Enforcement of Vaccination Requirement for Employees

Onsite Contractor Employees

Labor Relations Related to Vaccination

Safety Protocols Related to Vaccination UPDATED

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Vaccinations

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Vaccination Requirement for Federal Employees

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Enforcement of Vaccination Requirement for Employees

Q: What steps may an agency take if a Federal employee refuses to be vaccinated or provide proof of vaccination?

A: Employees covered by Executive Order 14043 who fail to comply with a requirement to be fully vaccinated or provide proof of vaccination and have neither received an exception or extension nor have an exception or extension request under consideration, are in violation

of a lawful order. Employees who violate lawful orders are subject to discipline, up to and including termination or removal.

Consistent with the Administration's policy, agencies should initiate an enforcement process to work with employees to achieve their compliance. Accordingly, agencies should initiate the enforcement process with an appropriate period of education and counseling, including providing employees with information regarding [the benefits of vaccination](#) and [ways to obtain the vaccine](#). If the employee does not demonstrate progress toward becoming fully vaccinated through completion of a required vaccination dose or provision of required documentation by the end of the counseling and education period, agencies may issue a letter of reprimand, followed by a short suspension (generally, 14 days or less). Continued noncompliance during the suspension can be followed by proposing removal.

Operational needs of agencies and the circumstances affecting a particular employee may warrant departure from these guidelines if necessary, including whether to expedite or extend the enforcement process. For example, agencies may consider the length of the education and counseling period or following an initial brief suspension (14 days or less) with a longer second suspension (15 days or more), rather than moving from a first suspension to proposal of removal. That said, consistency across Government in enforcement of this Government-wide vaccine policy is desired, and the Executive Order does not permit exceptions from the vaccination requirement except as required by law.

Agencies may initiate the enforcement process for employees who fail to submit documentation to show that they have completed receiving required vaccination dose(s), as long as those employees have not received an exception or extension, or the agency is not considering an exception or extension request from the employee.

If an employee responds at any phase of the enforcement process by submitting proof of progress toward full vaccination (i.e., completion of a required vaccination dose), the agency should hold the discipline in abeyance to afford the employee a reasonable period of time to become fully vaccinated.

In pursuing any adverse action, the agency must provide the required procedural rights to an employee and follow normal processes, including any agency policies or collective bargaining agreement requirements concerning disciplinary matters. Employees should not be placed on administrative leave while agencies are pursuing an adverse action for refusal to be vaccinated, but those employees will be required to follow safety protocols for employees who are not fully vaccinated when reporting to agency worksites.

If the employee claims a legally required exception, or a medical circumstance that necessitates delay of vaccination, as the reason for not being vaccinated, an agency should follow its ordinary process to review and consider what, if any, accommodation it must offer. All agency personnel designated to receive and review requests for accommodations should know how to handle requests consistent with applicable Federal law. If the employee's request for an exception or extension is denied, and the employee does not comply with the vaccination requirement in a timely manner, the agency may pursue disciplinary action, up to and including removal from Federal service.

OPM has issued [additional guidance](#) to further assist agencies with enforcing the vaccination requirement for Federal employees.

Onsite Contractor Employees

Labor Relations Related to Vaccination

Safety Protocols Related to Vaccination UPDATED

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place. FAQs with out-of-date information have been removed at this time.

Q: Can agencies incorporate vaccination requirements into contracts that are not covered by Executive Order 14042 (Ensuring Adequate COVID Safety Protocols for Contractors)?

A: Yes. Agencies are strongly encouraged to incorporate vaccination requirements into contracts that are not covered by Executive Order 14042, consistent with applicable law. This might include, for example, incorporating vaccination requirements into contracts in advance of when they are otherwise required by the Executive Order or incorporating requirements into contracts that are not covered by the Executive Order, such as contracts under the Simplified Acquisition Threshold. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14042.

Q: Should agencies inquire regarding the vaccination status of onsite contractor employees?

A: When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, agencies should ask about the vaccination status of contractor employees working onsite at that facility. Onsite contractor employees should attest to the truthfulness of the response they provide. If an onsite contractor employee chooses not to provide a response, they should be treated as not fully vaccinated for the purposes of implementing agency safety protocols. In requesting this information, agencies should comply with any applicable federal laws, including requirements under the Privacy Act and the Paperwork Reduction Act.

Q: Should onsite contractor employees provide proof of a negative COVID-19 test?

A: When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, onsite contractor employees who are not fully vaccinated or who decline to provide information about their vaccination status should be able to provide proof of a negative COVID-19 test from within the previous 3 days when in that facility. If a contractor employee is regularly tested pursuant to an agency testing program, then they do not need to be able to provide proof of a negative COVID-19 test from within the previous 3 days when in a Federal facility unless required to by the agency testing program.

Q: How should an agency ask onsite contractor employees about their vaccination status?

A: When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, onsite contractor employees should be provided with the [Certification of Vaccination form](#) when they enter that facility.

Unless an agency has an existing system of records notice that permits it to collect and maintain this information on its onsite contractor employees, agencies should direct onsite contractor employees to complete the Certification of Vaccination form and keep it with them during their time on Federal premises—they may be asked to show the form when in the Federal facility and to a Federal employee who oversees their work.

When the [COVID-19 Community Level](#) is MEDIUM or HIGH in a county where a Federal facility is located, onsite contractor employees who are not fully vaccinated (or who decline to disclose vaccination status) should be able to show proof of a negative COVID-19 test result from within the previous 3 days when in that facility. If a contractor employee is enrolled in an agency screening testing program, then they do not need to be able to provide proof of a negative COVID-19 test from within the previous 3 days when in a Federal facility unless required to by the agency screening testing program.

Agencies may email the Certification of Vaccination form to contractor employees in advance of their time on-site or utilize a tool or application to share the form with contractor employees and enable them to easily complete it, but the agency should not maintain Certification of Vaccination forms from contractor employees unless an agency has a system of records notice that covers its collection of this information from onsite contractor employees. Any such collection, storage, or maintenance of the attestation disclosure forms may implicate the Privacy Act and Paperwork Reduction Act.

Q: When will updated entry protocols related to vaccination status for visitors seeking to access GSA-controlled facilities take effect?

A: GSA Facility Managers and Lease Administration Managers will convene Facility Security Committees (FSCs), or equivalent security committees, as applicable, to discuss COVID-19 entry protocols for visitors to GSA-controlled facilities.

These protocols will go into effect on a facility-by-facility basis after the following conditions have been met:

- FSCs must provide the agency with protection responsibility for the facility, typically either the Department of Homeland Security - Federal Protective Service (DHS-FPS) or the Department of Justice - U.S. Marshals Service (DOJ-USMS), with a list of public

services and benefits provided by all occupant agencies in the facility.

- GSA must post signage at facility entrances indicating that visitors seeking to access the facility for reasons other than to obtain a public service or benefit must present a completed Certification of Vaccination Form to the security officers as a condition of entry, and that visitors seeking to access the facility to obtain a public service or benefit must declare such to the security officers. The signage will also indicate that all visitors are required to follow required safety protocols while accessing the facility, such as mask wearing and physical distancing.

The list of public services and benefits provided by all occupant agencies in the facility will be included in the post orders for the security officers, and security officers will admit visitors who indicate they are entering the facility to obtain a public service or benefit without a completed Certification of Vaccination Form, if the identified public service or benefit is on the list provided by the FSC. If there is a dispute over a particular public service or benefit, the visitor will need to contact the agency providing the public service or benefit for assistance. If occupant agency contact information signage is not currently posted at a GSA-controlled facility, GSA will post that signage at the same time that the visitor access signage is posted.

In GSA-controlled facilities with no onsite protection provided by either DHS-FPS or DOJ-USMS, occupant agencies are responsible for enforcement of visitor access protocols.

Q: If an agency has a system of records notice that covers its collection of information on vaccination status from onsite contractor employees, can the agency collect that information?

A: Yes, if an agency has a system of records notice that covers its collection of the requisite information—as reflected in the [Certification of Vaccination form](#)—from onsite contractor employees consistent with the Privacy Act, it may do so. The agency should ensure such a collection is also consistent with the Paperwork Reduction Act. The agency should provide a means for individuals to update their vaccination status over time.

Labor Relations Related to Vaccination

Safety Protocols Related to Vaccination UPDATED

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Labor Relations Related to Vaccination

Safety Protocols Related to Vaccination UPDATED**Q: Who is considered fully vaccinated?**

A: People are considered [fully vaccinated](#) for COVID-19 ≥ 2 weeks after they have received the second dose in a 2-dose series (Pfizer-BioNTech or Moderna), or ≥ 2 weeks after they have received a single-dose vaccine (Johnson and Johnson (J&J)/Janssen). There is currently no post-vaccination time limit on fully vaccinated status.

This guidance applies to COVID-19 vaccines currently either approved or authorized for emergency use by the U.S. Food and Drug Administration (Pfizer-BioNTech, Moderna, and Johnson & Johnson [J&J]/Janssen COVID-19 vaccines). This guidance can also be applied to COVID-19 vaccines that have been listed for emergency use by the World Health Organization (e.g., AstraZeneca/Oxford). More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

Q: Can an employee who participates in a clinical trial for a COVID-19 vaccine be considered fully vaccinated?

A: Clinical trial participants within or outside the United States who are documented to have received the recommended primary series doses of a WHO-EUL COVID-19 vaccine (i.e., not placebo) that is not FDA-approved or FDA-authorized, or a vaccine that is not listed for emergency use by WHO but for which a U.S. data and safety monitoring board or equivalent has independently confirmed efficacy, can be considered fully vaccinated 2 weeks after they have completed the vaccine series. More information is available [here](#).

Q: Can an employee who has received a heterologous primary vaccine series be considered fully vaccinated?

A: Individuals can be considered fully vaccinated ≥ 2 weeks after receipt of the last dose if they have received any combination of two doses of an FDA approved or authorized or WHO emergency use listed COVID-19 two-dose series. For these purposes, the second dose in a two dose heterologous series must have been received no earlier than 17 days (21 days with a 4-day grace period) after the first dose.

UPDATED Q: If a Federal employee seeks to enter a facility under the control of another agency, should they complete a Certification of Vaccination form (or an agency-specific certification form approved by OMB) at that facility?

A: Yes, Federal employees generally are treated as visitors during their visit to a facility under the control of another agency, meaning when the [COVID-19 Community Level](#) in the county where the agency facility is located is MEDIUM or HIGH, they should complete a [Certification of Vaccination form](#) (or an agency-specific certification form approved by OMB) and, if they are not fully vaccinated or decline to provide their vaccination information, they should be able to show proof of a negative COVID-19 test result within the past 3 days. As with other visitors, the employee should keep the documentation with them during their time onsite at the other agency.

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Vaccination Requirement for Federal Employees

NOTE: FAQs related to the vaccination requirement pursuant to Executive Order 14043 are not being updated while an applicable preliminary nationwide injunction is in place. FAQs with out-of-date information have been removed at this time.

Q: By what date do Federal employees need to be fully vaccinated?

A: Federal employees need to be fully vaccinated by November 22, 2021.

Employees will be considered [fully vaccinated](#) for COVID-19 2 weeks after they have received the requisite number of doses of a COVID-19 vaccine approved or authorized for emergency use by the U.S. Food and Drug Administration or that has been listed for emergency use by the World Health Organization. For Pfizer-BioNTech, Moderna, or AstraZeneca/Oxford, that is 2 weeks after an employee has received the second dose in a 2-dose series. For Johnson

and Johnson (J&J)/Janssen, that is 2 weeks after an employee has received a single-dose.

More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

Q: By what date do individuals who start their government service after November 22, 2021 need to be fully vaccinated?

A: Agencies should require that individuals who start their government service after November 22, 2021, be [fully vaccinated](#) prior to their start date, except in limited circumstances where an accommodation is legally required. Agencies should require documentation to prove vaccination prior to the enter on-duty date. However, should an agency have an urgent, mission-critical hiring need to onboard new staff prior to those new staff becoming fully vaccinated, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: How does the requirement for federal employees to be [fully vaccinated](#) apply to individuals who start their employment after the issuance of EO 14043 but prior to November 22, 2021?

A: Agencies should require that individuals who start their government service prior to November 22, 2021 be fully vaccinated by November 22, 2021, except in limited circumstances where an accommodation is legally required. Should an agency have an urgent, mission-critical hiring need to onboard new staff who cannot be fully vaccinated by November 22, 2021, the agency head may delay the vaccination requirement—in the case of such limited delays, agencies should require new hires to be fully vaccinated within 60 days of their start date and to follow safety protocols for not fully vaccinated individuals until they are fully vaccinated.

As soon as possible, agencies should ensure that individuals who will or may start their government service prior to November 22, 2021, are aware of the requirement to be fully vaccinated by that date and how to seek an exception required by law to the vaccination requirement. OPM has issued [further guidance](#) to agencies, including suggested language for job opportunity announcements and tentative and final offer letters.

Q: To what types of Federal employees does the vaccination requirement apply?

A: The vaccination requirement in Executive Order 14043 (Requiring Coronavirus Disease 2019 Vaccination for Federal Employees) covers employees as defined in 5 U.S.C. 2105 (including an employee paid from nonappropriated funds as referenced in 5 U.S.C. 2105(c)). Agencies are strongly encouraged to require vaccinations for any employees or other personnel working under an agreement with an agency not covered by the Executive Order, consistent with applicable law and in consultation with the Safer Federal Workforce Task Force. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14043.

Q: Does the requirement to be vaccinated apply to Federal employees who are not reporting to the worksite (e.g., are on maximum telework or working remotely)?

A: Yes. To protect the health and safety of the Federal workforce and to promote the efficiency of the civil service, all Federal employees covered by Executive Order 14043 and without a legally required exception need to be [fully vaccinated](#) by November 22, 2021, regardless of where they are working. Employees who are on maximum telework or working remotely are not excused from this requirement, including because employees working offsite may interact with the public as part of their duties and agencies may need to recall employees who are on maximum telework or working remotely.

Q: Do agencies need to provide onsite vaccinations to their employees?

A: No. Agencies should take steps to make their employees aware of convenient opportunities to be vaccinated. Given the [widespread availability of vaccinations](#), it is not required that agencies provide vaccinations at their facilities or worksites, although agencies may choose to do so.

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Vaccination Requirement for Federal Employees

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Q: Should agencies require or request employees and potential employees to provide information about their vaccination status?

To be consistent with guidance from the Safer Federal Workforce Task Force, agencies should take no action to require or request employees and potential employees to provide information about their COVID-19 vaccination status solely for purposes of implementing the vaccination requirement pursuant to E.O. 14043.

Consistent with CDC's guidance, for most Federal workplaces, COVID-19 workplace safety protocols currently do not vary based on vaccination status or otherwise depend on vaccination information, regardless of the COVID-19 Community Level for the county where the Federal workplace is located. Where this is the case, agencies should pause any efforts

to require, request, or collect vaccination status information for the purposes of implementing agency COVID-19 workplace safety protocols.

Agencies with employee COVID-19 vaccination requirements pursuant to authorities other than E.O. 14043 are unaffected by the injunction and may continue to require that employees provide information about their vaccination status, including documentation of proof of vaccination from employees and potential employees subject to those requirements, as can agencies with other setting-specific dependencies on collecting vaccination information from employees in those settings. Such agencies should consult with the Safer Federal Workforce Task Force, the agency's General Counsel, and the agency's Senior Agency Official for Privacy on such requirements, including related to information collection.

When agencies pause requiring, requesting, and collecting vaccination status information, such agencies must continue to preserve their vaccination information collection systems and the information collected to date from employees in accordance with the Federal Records Act and other records requirements. Furthermore, it is important to preserve this information as COVID-19 workplace safety protocols may change in the future, or collection of this information from Federal employees may otherwise need to resume.

Q: If agencies require that employees provide information about their vaccination status because of an agency-specific vaccination requirement or an approved setting-specific dependency on collecting vaccination information, may agencies require documentation from employees to prove vaccination status?

A: Yes. If agencies require that employees provide information about their vaccination status because of an agency-specific vaccination requirement or approved setting-specific dependency on collecting vaccination information, agencies may require documentation from employees to prove vaccination, subject to those authorities or requirements, even if an employee has previously attested to their vaccination status. In requesting such information, agencies must comply with any applicable Federal laws, including requirements under the Privacy Act and Rehabilitation Act of 1973.

Q: How should agencies maintain any documentation provided by employees regarding vaccination?

A: Agencies must continue to preserve their vaccination information collection systems and information collected to date from employees in accordance with the Federal Records Act and other records requirements. Furthermore, it is important to preserve this information

as COVID-19 workplace safety protocols may change in the future, or collection of this information from Federal employees may otherwise need to resume.

If an agency requires that employees provide information about their vaccination status because of an agency-specific vaccination requirement or approved setting-specific dependency on collecting vaccination information, the agency may develop their own processes, systems, tools, and applications, related to those requirements or dependencies, to both collect and maintain the required information, in compliance with all applicable laws and in accordance with their agency record management policies.

The collection and use of this information for many agencies is subject to the OPM/GOVT-10 Employee Medical File system of records notice (SORN) and OPM regulations (5 C.F.R. part 293, subpart E). Under those rules, each agency should have written instructions for its Employee Medical Folder (EMF) system with appropriate safeguards. Employees should be provided with a [Privacy Act statement](#) at the point of collection of this information. Agencies that are not subject to OPM's regulations (or who employ categories of employees not covered by OPM/GOVT-10) should give their employees an alternative Privacy Act or comparable statement, as applicable. As a general rule, this information should not be maintained in the Official Personnel Folder.

Agencies are encouraged to take steps to promote employee privacy and agency IT security, while also providing the relevant information to those in the agency who need to know in order to implement the safety protocols. Agencies should consult with their Agency Records Officer, Chief Information Officer, Senior Agency Official for Privacy, and agency's legal counsel to determine the best means to maintain this information to meet the agency's needs.

Q: Which individuals within an agency should have access to information on employees' vaccination status?

A: The Privacy Act permits disclosure within the agency to employees "who have a need for the record in the performance of their duties." 5 U.S.C. 552a(b)(1). Agencies should only disseminate information to the appropriate agency officials who have a need to know to ensure effective implementation of the safety protocols, which, in many cases, will include the supervisor level. Agencies must comply with the requirements of the Privacy Act at all times. Agencies should consult with their Senior Agency Official for Privacy on any questions related to Privacy Act requirements.

Q: Is onsite verification of vaccination status for Federal employees required as a

condition of entry to GSA-controlled facilities?

A: No, onsite verification of a Federal employee's COVID-19 vaccination status is not required as a condition to enter GSA-controlled facilities. Security officers at GSA-controlled facilities will admit any Federal employee with a valid PIV card to the facility without requiring onsite proof of vaccination.

Enforcement of applicable workplace safety protocols, including any required testing for Federal employees with approved or pending exceptions, are the responsibility of occupant agencies.

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Q: Are there exceptions to the requirement for all employees to be fully vaccinated?

A: Federal employees must be fully vaccinated other than in limited circumstances where the law requires an exception. In particular, an agency may be required to provide a

reasonable accommodation to employees who communicate to the agency that they are not vaccinated against COVID-19 because of a disability or because of a sincerely held religious belief, practice, or observance. Determining whether an exception is legally required will include consideration of factors such as the basis for the claim; the nature of the employee's job responsibilities; and the reasonably foreseeable effects on the agency's operations, including protecting other agency employees and the public from COVID-19. Because such assessments will be fact- and context-dependent, agencies are encouraged to consult their offices of general counsel with questions related to assessing and implementing any such requested accommodations.

Q: Should agencies establish a date by which employees should notify agencies that they are seeking a legally required exception to the requirement to not be fully vaccinated?

A: Yes. In order to ensure that agencies can fully understand the effect of accommodation requests on their operations and to seek to ensure timely review of requests for an accommodation, agencies should establish a date by which employees should as a general matter notify agencies that they are seeking a legally required exception to the requirement to be fully vaccinated. Employees can submit requests for an exception after the date established by the agency.

Q: Should agencies provide employees who are seeking a legally required exception to the vaccination requirement with a form?

A: Yes. Agencies can refer to the following templates to develop a form for employees who are seeking an exception based on a [medical condition](#) (*template issued October 4, 2021*) or based on [religion](#) (*template updated October 29, 2021*). The information on the forms may be used by the agency to help determine whether the employee is entitled to an accommodation. The agency may also ask for other information as needed to determine if the individual is legally entitled to an accommodation. Agencies should consult with their senior agency official for privacy and their office of general counsel to address all legal considerations and privacy requirements in developing their forms, including but not limited to an appropriate Privacy Act Statement. Agencies should comply with any applicable recordkeeping and other requirements.

Q: If an employee requests an accommodation, and that accommodation is denied, how long should the employee be afforded to be fully vaccinated?

A: Agencies should require that an employee whose request for an accommodation is

denied receive their first (or, if a one-dose series, only) dose within two weeks of the final determination to deny the accommodation. If receiving a two-dose series, the employee must receive the second dose within 6 weeks of receiving the first dose.

If the employee received a first dose of a two-dose series prior to seeking an accommodation, agencies should require that the employee receive their second dose within two weeks of the final determination to deny the accommodation or within a week of the earliest day by which they can receive their second dose, whichever is later.

Q: Is vaccination for COVID-19 recommended for people who are trying to get pregnant or might become pregnant in the future?

A: Yes. The CDC has [stated](#) that COVID-19 vaccination is recommended for people who are trying to get pregnant now or might become pregnant in the future, as well as their partners.

Q: Does the CDC recommend that an employee delay vaccination due to pregnancy?

A: The CDC recommends COVID-19 vaccination for [people who are pregnant, breastfeeding, trying to become pregnant now, or trying to become pregnant in the future](#). The American College of Obstetricians and Gynecologists and Society for Maternal-Fetal Medicine [recommend](#) that all pregnant individuals be vaccinated against COVID-19. However, an agency may allow such an employee to delay vaccination based on the employee's particular medical circumstances, consistent with the agency's process for reviewing delay requests.

Q: Is an employee who has had a prior COVID-19 infection required to be fully vaccinated?

A: Yes, an employee who has had a prior COVID-19 infection is required to be fully vaccinated. The CDC recommends that vaccination of people with known current SARS-CoV-2 infection should be delayed until the person has recovered from the acute illness (if the person had symptoms) and has satisfied the [criteria](#) to discontinue isolation.

Q: Can an employee delay a COVID-19 vaccine because they have recently received another vaccine, such as the seasonal influenza vaccine?

A: COVID-19 vaccines may be administered without regard to timing of other vaccines. This includes simultaneous administration of COVID-19 vaccine and other vaccines on the same day.

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To ensure compliance with an applicable preliminary nationwide injunction, which may be supplemented, modified, or vacated, depending on the course of ongoing litigation, the Federal Government will take no action to implement or enforce the COVID-19 vaccination requirement pursuant to Executive Order 14043 on *Requiring Coronavirus Disease 2019 Vaccination for Federal Employees*. Safer Federal Workforce Task Force guidance on other Federal agency safety protocols remains in effect. For answers to frequently asked questions (FAQs) on compliance with the applicable preliminary nationwide injunction, see this [guidance](#) (Updated August 17, 2022; Originally Issued January 24, 2022; PDF, [Download Adobe Reader](#)).

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Q: What steps may an agency take if a Federal employee refuses to be vaccinated or provide proof of vaccination?

A: Employees covered by Executive Order 14043 who fail to comply with a requirement to be fully vaccinated or provide proof of vaccination and have neither received an exception or extension nor have an exception or extension request under consideration, are in violation of a lawful order. Employees who violate lawful orders are subject to discipline, up to and

including termination or removal.

Consistent with the Administration's policy, agencies should initiate an enforcement process to work with employees to achieve their compliance. Accordingly, agencies should initiate the enforcement process with an appropriate period of education and counseling, including providing employees with information regarding [the benefits of vaccination](#) and [ways to obtain the vaccine](#). If the employee does not demonstrate progress toward becoming fully vaccinated through completion of a required vaccination dose or provision of required documentation by the end of the counseling and education period, agencies may issue a letter of reprimand, followed by a short suspension (generally, 14 days or less). Continued noncompliance during the suspension can be followed by proposing removal.

Operational needs of agencies and the circumstances affecting a particular employee may warrant departure from these guidelines if necessary, including whether to expedite or extend the enforcement process. For example, agencies may consider the length of the education and counseling period or following an initial brief suspension (14 days or less) with a longer second suspension (15 days or more), rather than moving from a first suspension to proposal of removal. That said, consistency across Government in enforcement of this Government-wide vaccine policy is desired, and the Executive Order does not permit exceptions from the vaccination requirement except as required by law.

Agencies may initiate the enforcement process for employees who fail to submit documentation to show that they have completed receiving required vaccination dose(s), as long as those employees have not received an exception or extension, or the agency is not considering an exception or extension request from the employee.

If an employee responds at any phase of the enforcement process by submitting proof of progress toward full vaccination (i.e., completion of a required vaccination dose), the agency should hold the discipline in abeyance to afford the employee a reasonable period of time to become fully vaccinated.

In pursuing any adverse action, the agency must provide the required procedural rights to an employee and follow normal processes, including any agency policies or collective bargaining agreement requirements concerning disciplinary matters. Employees should not be placed on administrative leave while agencies are pursuing an adverse action for refusal to be vaccinated, but those employees will be required to follow safety protocols for employees who are not fully vaccinated when reporting to agency worksites.

If the employee claims a legally required exception, or a medical circumstance that

necessitates delay of vaccination, as the reason for not being vaccinated, an agency should follow its ordinary process to review and consider what, if any, accommodation it must offer. All agency personnel designated to receive and review requests for accommodations should know how to handle requests consistent with applicable Federal law. If the employee's request for an exception or extension is denied, and the employee does not comply with the vaccination requirement in a timely manner, the agency may pursue disciplinary action, up to and including removal from Federal service.

OPM has issued [additional guidance](#) to further assist agencies with enforcing the vaccination requirement for Federal employees.

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NOTE: FAQs related to the vaccination requirement pursuant to Executive Order 14042 are not being updated while an applicable preliminary nationwide injunction is in place. FAQs with out-of-date information have been removed at this time.

Q: Can agencies incorporate vaccination requirements into contracts that are not covered by Executive Order 14042 (Ensuring Adequate COVID Safety Protocols for Contractors)?

A: Yes. Agencies are strongly encouraged to incorporate vaccination requirements into contracts that are not covered by Executive Order 14042, consistent with applicable law. This might include, for example, incorporating vaccination requirements into contracts in advance of when they are otherwise required by the Executive Order or incorporating requirements into contracts that are not covered by the Executive Order, such as contracts under the Simplified Acquisition Threshold. Implementation of such additional requirements should generally follow the Safer Federal Workforce Task Force's guidance for implementing the vaccination requirement in Executive Order 14042.

Q: Should agencies inquire regarding the vaccination status of onsite contractor employees?

A: To be consistent with Safer Federal Workforce Task Force guidance, agencies should pause asking onsite contractor employees to provide information about their COVID-19 vaccination status, regardless of COVID-19 Community Levels, where COVID-19 safety protocols do not vary based on vaccination status. This is true regardless of COVID-19 Community Levels.

If an agency head approves an exception—following consultation with the agency COVID-19 Coordination Team, including the agency Office of General Counsel, and the Safer Federal Workforce Task Force—for asking onsite contractor employees about their vaccination status because of setting-specific dependencies on vaccination information, then the agency would need to use an agency-specific form approved separately by OMB. The previously issued Government-wide [Certification of Vaccination form](#) must not be used. If an agency head approves an exception—following consultation with the agency COVID-19 Coordination Team, including the agency Office of General Counsel, and the Safer Federal Workforce Task Force—for collecting vaccination information from onsite contractor employees because of setting-specific dependencies on vaccination information, any information collection regarding the vaccination status of onsite contractor employees must

be in accordance with the Privacy Act of 1974 and, if applicable, would require an agency-specific System of Records Notice.

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Q: Who is considered fully vaccinated?

A: People are considered [fully vaccinated](#) for COVID-19 ≥ 2 weeks after they have received the second dose in a 2-dose series (Pfizer-BioNTech or Moderna), or ≥ 2 weeks after they have received a single-dose vaccine (Johnson and Johnson (J&J)/Janssen). There is currently no post-vaccination time limit on fully vaccinated status.

This guidance applies to COVID-19 vaccines currently either approved or authorized for emergency use by the U.S. Food and Drug Administration (Pfizer-BioNTech, Moderna, and Johnson & Johnson [J&J]/Janssen COVID-19 vaccines). This guidance can also be applied to COVID-19 vaccines that have been listed for emergency use by the World Health Organization (e.g., AstraZeneca/Oxford). More information is available at [Interim Clinical Considerations for Use of COVID-19 Vaccines | CDC](#).

Q: Can an employee who participates in a clinical trial for a COVID-19 vaccine be considered fully vaccinated?

A: Clinical trial participants within or outside the United States who are documented to have received the recommended primary series doses of a WHO-EUL COVID-19 vaccine (i.e., not placebo) that is not FDA-approved or FDA-authorized, or a vaccine that is not listed for emergency use by WHO but for which a U.S. data and safety monitoring board or equivalent has independently confirmed efficacy, can be considered fully vaccinated 2 weeks after they have completed the vaccine series. More information is available [here](#).

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